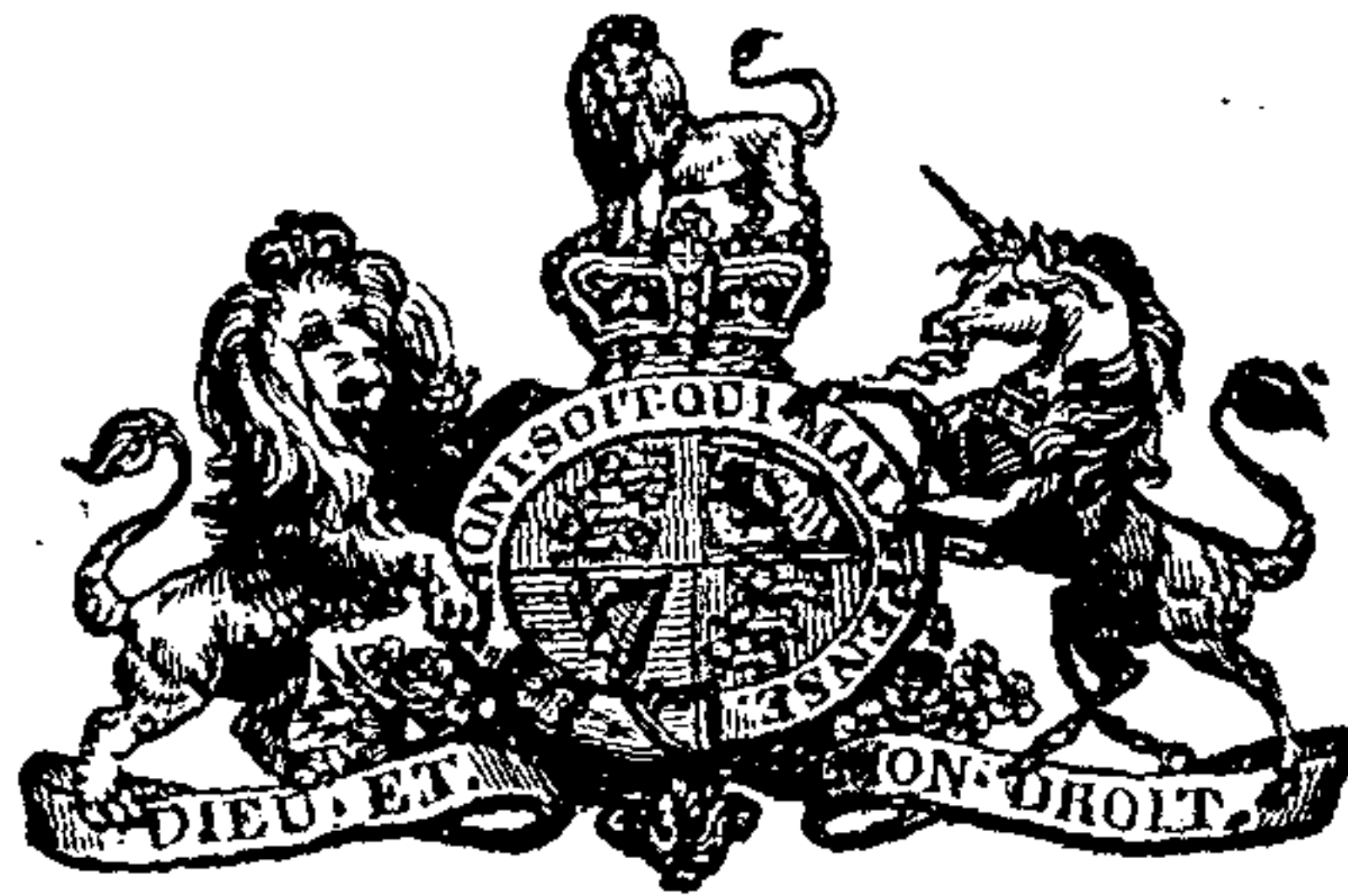




CHAPTER clxxxiii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Gloucester Northampton and Torquay and to the Walton-upon-Trent Bridge in the Counties of Derby and Stafford. A.D. 1900.
[30th July 1900.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1900. Short title.

A.D. 1900.

S C H E D U L E.

*Gloucester
Order.*

CITY OF GLOUCESTER.

*Provisional Order made in pursuance of Sections 54 and 59 of the
Local Government Act 1888.*

To the Mayor Aldermen and Citizens of the City of Gloucester in the
County of the City of Gloucester ; —

To the Justices of the Peace for the said City ; —

To the Court of Quarter Sessions for the said City ; —

To the School Board for the said City ; —

To the Justices of the Peace for the County of Gloucester in Quarter
Sessions assembled ; —

To the County Council of Gloucester ; —

To the Rural District Council of Gloucester ; —

To the Guardians of the Poor of the Gloucester Union ; —

To the School Board for the United School District of Barton Saint
Mary ; —

To the Parish Councils of Barnwood Hempstead Quedgley Tuffley and
Upton Saint Leonard's ; —

To the Chairman of the Parish Meeting of each of the Parishes of Matson
and Whaddon ;

To the Overseers of the Poor of each of the Parishes of Barnwood
Gloucester Hempstead Matson Quedgley Upton Saint Leonard's and
Whaddon and of the Hamlet of Tuffley ; —

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local
Government Board are empowered to make a Provisional Order for altering the
boundary of any Borough and by such Order to divide or alter any electoral
division ;

And whereas the City of Gloucester is a County of itself and is a County
Borough within the meaning of the Local Government Act 1888 and the
inhabitants of the City are a body corporate by the name of the Mayor Aldermen
and Citizens of the City of Gloucester in the County of the City of Gloucester
and act by the Council of the said City which now consists of the Mayor (who
is also a Councillor) nine Aldermen and twenty-six other Councillors ;

And whereas the said City is for the purposes of the election of Councillors
divided into four wards termed respectively the East Ward the West Ward the
South Ward and the Barton Ward ;

And whereas the said City is an Urban Sanitary District of which the Mayor
Aldermen and Citizens acting by the council are the Urban Sanitary Authority ;

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

And whereas the said City has a separate court of quarter sessions recorder
commission of the peace sheriff and coroner ;

A.D. 1900.

*Gloucester
Order.*

And whereas the said City is co-extensive with the Parish of Gloucester ;

And whereas the unrepealed provisions of the Local Acts and Confirmation
Acts mentioned in the schedule to this Order so far as the last-mentioned Acts
relate to the Provisional Orders mentioned in that schedule are in force in the
said City ;

And whereas the Urban Sanitary Authority have adopted the provisions of—

(a.) The Infectious Disease (Prevention) Act 1890 and

53 & 54 Vict.
c. 34.

(b.) Parts II. III. and V. of the Public Health Acts Amendment Act 1890 ;
and those provisions are accordingly in force in the said City ;

53 & 54 Vict.
c. 59.

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public
Libraries Acts 1892 and 1893 are in force in the said City ;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.

And whereas the Council of the said City are under the Burial Acts 1852 to
1885 the Burial Board for the said City ;

And whereas in pursuance of Section 277 of the Public Health Act 1875—

15 & 16 Vict.
c. 85.

(a) parts of the Parishes of Barnwood and Upton Saint Leonard's have been
constituted a Special Drainage District termed the East End Special
Drainage District ;

48 & 49 Vict.
c. 21.

(b) parts of the Parishes of Hempstead and Matson and of the Hamlet of
Tuffley have been constituted a Special Drainage District termed the
South End Special Drainage District and

(c) the remainder of the said Parish of Barnwood the Parish of Longford
and parts of two other parishes which are not affected by this Order
have been constituted a Special Drainage District termed the North
End Special Drainage District ;

And whereas each of the said Special Drainage Districts and the portion of
each of the Parishes of Hempstead Matson and Upton Saint Leonard's and of
the Hamlet of Tuffley which is not comprised within any of the said Special
Drainage Districts are contributory places in the Rural District of Gloucester
and are subject to the jurisdiction of the Rural District Council of Gloucester ;

And whereas the said Rural District Council have adopted the provisions of—

(a.) The Infectious Disease (Prevention) Act 1890 and

53 & 54 Vict.
c. 34.

(b.) Part III. of the Public Health Acts Amendment Act 1890 ;
and those provisions are accordingly in force in the said Rural District ;

53 & 54 Vict.
c. 59.

And whereas certain provisions of the Private Street Works Act 1892 are in
force as regards certain streets in the said Hamlet of Tuffley ;

55 & 56 Vict.
c. 57.

And whereas the said Parishes of Barnwood Hempstead Matson and Upton
Saint Leonard's and the said Hamlet of Tuffley are included in the Upton
Saint Leonard's Electoral Division of the County of Gloucester ;

And whereas the said Parishes of Barnwood Gloucester Hempstead Matson
Quedgley Upton Saint Leonard's and Whaddon and the said Hamlet of Tuffley
are included in the Gloucester Union and thirty-four Guardians are elected for the
said Parish of Gloucester two Rural District Councillors are elected for the said
Parish of Barnwood and the said Hamlet of Tuffley respectively one Rural
District Councillor is elected for the Parish of Matson and the Parishes of

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. Hempstead and Upton Saint Leonard's are respectively united with the respective
Gloucester Parishes of Saint Nicholas (Without) and Prinknash Park in the Gloucester
Order. Union and two Rural District Councillors are elected in each case for the
 parishes as so united ;

And whereas each of the said Parishes of Barnwood Hempstead Quedgley and
 Upton Saint Leonard's and the said Hamlet of Tuffley is a Rural Parish within
 the meaning of the Local Government Act 1894 for which a Parish Council has
 been established ;

33 & 34 Vict.
 c. 75.
 62 & 63 Vict.
 c. 13. And whereas by virtue of the Elementary Education Acts 1870 to 1899 the
 said City is a School District and the said Hamlet of Tuffley is included in the
 Barton Saint Mary United School District and a school board has been formed
 for the said City and for the Barton Saint Mary United School District and the
 said Parishes of Barnwood Hempstead Matson and Upton Saint Leonard's are
 subject to the jurisdiction of the School Attendance Committee appointed by the
 Guardians of the Poor of the Gloucester Union ;

51 & 52 Vict.
 c. 41. Now therefore We the Local Government Board in pursuance of the powers
 given to Us by Sections 54 and 59 of the Local Government Act 1888 and by
 any other enactments in that behalf do hereby order that from and after the
 date of the Act of Parliament confirming this Order the following provisions
 shall take effect :—

Definitions.

Art. I. In this Order—

- (1.) The expression "the commencement of this Order" means the Ninth
 day of November One thousand nine hundred.
- (2.) The expression "the existing City" means the City of Gloucester as it
 existed immediately prior to the commencement of this Order.
- (3.) The expression "the City" means the existing City as extended by
 this Order.
- (4.) The expression "the Corporation" means the Mayor Aldermen and
 Citizens of the existing City or of the City (as the context may require)
 acting by the council.
- (5.) The expressions "the Rural District" and "the Rural Council" mean
 respectively the Rural District of Gloucester and the Rural District
 Council of that district.
- (6.) The expressions "the County" and "the County Council" mean
 respectively the County of Gloucester and the County Council of that
 County.
- (7.) The expression "the existing Gloucester School Board" means the
 School Board for the existing City.
- (8.) The expression "the Barton Saint Mary School Board" means the
 School Board for the Barton Saint Mary United School District.
- (9.) The expression "the Lighting Commissioners" means the Commis-
 sioners acting in the execution of an Act passed in the fourth year of the
 reign of His late Majesty King William the Fourth intituled "An Act to
 " provide for lighting the suburbs of the City of Gloucester with gas."
- (10.) The expression "the added areas" means the parts of the Rural
 District added to the existing City by this Order.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

- (11.) The expression "the added part of Barnwood" "the added part of Hempstead" "the added part of Matson" "the added part of Upton Saint Leonard's" and "the added part of Tuffley" mean respectively the parts of the Parishes of Barnwood Hempstead Matson and Upton Saint Leonard's and of the Hamlet of Tuffley which are respectively coloured dark brown light brown light green yellow and dark blue on the City maps.
- (12.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894.
- (13.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

A.D. 1900.

*Gloucester
Order.*

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred :

Commence-
ment of Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order :

Date of opera-
tion of Order
for parish
burgess lists
&c.
51 Vict. c. 10.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 the City shall be deemed not to have been extended until after the Thirty-first day of March One thousand nine hundred and one.

Date of operation
for grants from
Local Taxation
Account.
53 & 54 Vict.
c. 60.

Art. III.—(1.) The boundary of the existing City the area whereof is coloured pink on the two maps each marked "Map of the City of Gloucester as extended 1900" and signed by Sir Augustus Frederick Godson Kt. M.P. the Chairman of the Committee of the House of Commons to whom the Bill for the Act to confirm this Order was referred (which maps are hereafter referred to as the "City Maps") shall be altered so as to include in addition to that area the parts of the Rural District which comprise the added part of Barnwood the added part of Hempstead the added part of Matson the added part of Tuffley and the added part of Upton Saint Leonard's.

Extension of
City.

(2.) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within such boundary exclusive of the said Parish of Wotton Vill the area whereof is coloured light blue on the City maps shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City and the County of the City and shall be the County Borough for the purposes of the Act of 1888.

Art. IV.—(1.) One of the City maps and one of the two ward maps each marked "Map of the Wards of the City of Gloucester as extended 1900" and

Deposit of
maps.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

*Gloucester
Order.*

signed by Sir Augustus Frederick Godson Kt. M.P. the Chairman of the said Committee of the House of Commons (which ward maps are hereafter referred to as "the ward maps") shall be deposited in the office of the Local Government Board and the other shall be forthwith deposited by the town clerk of the existing City at his office. Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council and to the Board of Agriculture and a copy of the ward map so certified shall be sent within the said period to the Board of Agriculture.

Copies of map
to be evidence.

(2.) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as relates to the boundary of the City and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the city fund.

Powers and
duties of
justices &c.
extended.

Art. V.--(1.) The powers and duties of the quarter sessions recorder clerk of the peace sheriff and coroner of the existing City and of the justices of the peace appointed for the existing City and of the clerk to such justices shall extend to and apply throughout the City :

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made.

Transfer of
lists of
prisoners &c.

(2.) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the added areas shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the City were as respects the added areas the new sheriff in succession to the sheriff of the County.

Parish burgess
lists &c.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added areas shall be deemed to have always been part of the City and the town clerk of the existing City shall be the town clerk of the City and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Local Government Board may make such Order as shall appear to them to be necessary to give effect to the provisions of this Order and may vary so far as shall be necessary the provisions in force with regard to such lists roll and registers.

A.D. 1900.

Art. VII. The number of Councillors of the City shall be increased from twenty-seven to thirty and the number of Aldermen of the City shall be increased from nine to ten.

Gloucester Order.

Number of Councillors and Aldermen.

Art. VIII. Subject as regards any future alteration of the wards hereby constituted to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Municipal wards.

(1.) For the purposes of the election of Councillors the City shall be divided into ten wards to be termed respectively the West Ward the Kingsholm Ward the East Ward the Alington Ward the South Ward the South End Ward the Barton Ward the Lower Barton Ward the Tredworth Ward and the Tuffley Ward,

(2.) Each of the said wards shall comprise that portion of the City which is indicated by a separate colour and distinguished by the name of the ward on the ward maps.

Boundaries of wards.

(3.) Three Councillors shall be assigned to each of the said wards.

Art. IX. For the purposes of the election of a town council for the City in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred the following provisions shall apply:—

Special provisions for first election of Councillors in 1900.

(a.) The town clerk and the Mayor of the existing City or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing City or such other person as he shall appoint shall be the returning officer at the election for each ward.

(b.) Thirty Councillors of the City shall be elected on the First day of November One thousand nine hundred and ten Aldermen of the City shall be elected on the Ninth day of November One thousand nine hundred,

(c.) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing City who shall be in office on the First day of November One thousand nine hundred shall go out of office on that date and all the Aldermen of the existing City who shall be in office on the Eighth day of November One thousand nine hundred shall go out of office on that date and all such Councillors and Aldermen shall be eligible for election as Councillors on the First day of November One thousand nine hundred.

Art. X.—(1.) The Councillors elected for the City in the year one thousand nine hundred in pursuance of this Order shall retire as follows:—

Retirement of Councillors and Aldermen elected in 1900.

(a.) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and one.

(b.) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and three.

(c.) The other Councillor for each ward on the First day of November One thousand nine hundred and two.

(2.) The Aldermen elected for the City in the year one thousand nine hundred shall retire as follows:—

(a.) The five Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and three.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

*Gloucester
Order.*

(b.) The other five Aldermen on the Ninth day of November One thousand nine hundred and six :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the City shall on the Ninth day of November One thousand nine hundred or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

City Acts and
Orders.

Art. XI. The unrepealed provisions of the Local Acts and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof.

Byelaws &c.

Art. XII.—(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

(2.) All byelaws and regulations made by the County Council or by the Rural Council and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that council As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District respectively Provided that any proceedings which might have been taken by the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by the Rural Council and in force on that date in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Rural Council.

Town clerk
and other
officers
continued.

Art. XIII.—(1.) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

City auditors.

(2.) The auditors who are in office at the commencement of this Order shall continue in office and shall be the city auditors until the next ordinary day of election of city auditors.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

Art. XIV.—(1.) Every officer and servant for whose case this Order does not otherwise specially provide and who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the City and in the case of any other such officer or servant out of the city fund of the City and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1900.
Gloucester
Order.
 Compensation
 to existing
 officers.

(2.) Any such officer or servant whose salary shall be reduced on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XV.—(1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Rural Council in relation exclusively to any part of the added areas the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

Actions &c.
 not to abate.

(2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
 contracts &c.

Art. XVI. All property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

Corporation
 property &c.

Art. XVII. Subject to the provisions of this Order—

(1.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council or the Lighting Commissioners in relation exclusively to any part of the added areas shall be transferred to vested in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or

Property &c. of
 Rural Council.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

*Gloucester
Order.*

Cesser of
jurisdiction of
Rural Council.

Arrears of
rates &c.

Mortgage
debts of
Corporation
and Rural
Council.

Alteration of
school districts
&c.

attached to the Rural Council or the Lighting Commissioners in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

(2.) The Rural Council and the Lighting Commissioners shall cease to exercise any powers or have any duties within any part of the added areas.

(3.) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses and all arrears of rates made or caused to be made by the Lighting Commissioners which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied in the case of rates made by the Overseers of the Poor towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied the balances if any being paid to the Corporation and in the case of rates made or caused to be made by the Lighting Commissioners shall be paid to the Corporation.

Art. XVIII. (1.) The liability for repayment of any sums borrowed by the Rural Council for the execution of permanent works in the East End Special Drainage District or the South End Special Drainage District or of so much thereof as shall be owing at the commencement of this Order and for the payment of the interest thereon shall be transferred and attach to the Corporation.

(2.) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund and city rates of the existing City shall be charged upon the city fund and city rates of the City and so much of any sums borrowed by the Corporation as will at that date be owing and charged upon the district fund and general district rates of the existing City and so much of the sums mentioned in subdivision (1) of this Article as will be owing at the same date shall be charged upon the district fund and general district rates of the City and all such sums together with the interest to accrue due thereon shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Art. XIX. For the purposes of the Elementary Education Acts 1870 to 1899—

(a.) The members of the existing Gloucester School Board who shall be in office at the commencement of this Order shall be deemed to have been elected and shall be the School Board for the City.

(b.) Any byelaws in force in the existing City at the commencement of this Order shall thenceforth apply to the City until revoked or altered.

(c.) The Barton Saint Mary School Board shall be abolished and cease to exist and any byelaws made by that School Board shall cease to have effect.

(d.) All the property and liabilities which immediately before the commencement of this Order are vested in and attached to the Barton Saint Mary School Board shall be transferred to and vested in and attached to the School Board for the City and the outstanding mortgage debt of the Barton Saint Mary School Board and the interest thereon shall be

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

charged upon the school fund and the local rate for the time being chargeable with the expenses of and shall be repaid by the School Board for the City within the period for which the loan in respect of which the said mortgage debt is owing was originally sanctioned.

A.D. 1900.
—
Gloucester
Order.

(e.) The provisions of sub-section (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to the persons who at the commencement of this Order hold office as officers or servants of the Barton Saint Mary School Board with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the School Board for the City.

(f.) Every officer and servant of the School Attendance Committee appointed by the Guardians of the Poor of the Gloucester Union who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the School Board for the City and in determining such compensation and the compensation payable to any officer or servant of the Barton Saint Mary School Board who becomes entitled to compensation in pursuance of paragraph (e) of this Article regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the school fund and the local rate for the time being chargeable with the expenses of the School Board for the City and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be necessary.

Art. XX. The accounts of the Barton Saint Mary School Board and of their officers and of the Parish Council of Tuffley and of any committee and officers of such Parish Council up to the commencement of this Order shall be audited in like manner and subject to the like incidents and consequences as if this Order had not been made :

Saving for
audit of School
Board and
Parish Council
Accounts up
to appointed
day.

Provided that such audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit of the accounts of any such authority committee or officers to the contrary notwithstanding :

Provided also that any sum certified by the auditor which would have been required to be paid to the treasurer of the Barton Saint Mary School Board shall be paid to the treasurer of the School Board for the City and any sum certified by the auditor which would have been required to be paid to the treasurer of the Parish Council of Tuffley shall be paid to the treasurer of the City.

Art. XXI.—(1.) In any case where the extension of the City by this Order shall affect the distribution of the proceeds of the local taxation licences of the estate duty and of the Local Taxation (Customs and Excise) duties between the County and the City or between the County or the City on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard

Adjustment of
financial
relations
between
County and
County
Boroughs.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

*Gloucester
Order.*

to such distribution and financial relations or questions equitable adjustments may be made between the areas interested.

(2.) Any such adjustment may be made by agreement between the Councils of the County and of the County Boroughs affected before the Thirtieth day of September One thousand nine hundred and one and in default of such agreement shall be made by the Local Government Board or if that Board think fit by an arbitrator appointed by them.

(3.) For the purposes of such adjustments the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in such provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided—

- (a) that in lieu of sub-section (6) of Section 61 of the Act of 1888 sub-sections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of such inquiries and
- (b) that sub-section (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Compensation
to existing
county officers.

(4.) Every county coroner clerk to justices and every other officer or servant of or paid by the County Council or of the Standing Joint Committee of the County who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the city fund and the provisions of sub-sections (2) to (7) of that section shall apply with the necessary modifications.

Council to be
Burial Board.

Art. XXII. The Council of the City shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a Burial Board under the Burial Acts 1852 to 1885.

Adoptive Acts.

Art. XXIII.—(1.) The provisions of the Infectious Disease (Prevention) Act 1890 Parts II. III. and V. of the Public Health Acts Amendment Act 1890 the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 and 1893 shall be in force within and apply to the City as if the same had been adopted therein.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

(2.) Such of the provisions of the Private Street Works Act 1892 as are in force in any part of the added areas shall cease to be in force therein :

A.D.1900.

Provided that nothing in this subdivision shall—

*Gloucester
Order.*

- (a) affect the operation prior to the commencement of this Order of any such provisions of the said Act or anything duly done or suffered under any such provisions or
- (b) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions of the said Act or
- (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions of the said Act or
- (d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Art. XXIV.—(1.) Subject to the provisions of Section 54 of the Act of 1888 the Upton Saint Leonard's Electoral Division of the County as diminished by the extension of the City shall continue to be an electoral division of the County and the County Councillor who at the commencement of this Order represents that electoral division shall from and after that date continue to represent that division as hereby altered as if he had been originally elected to represent such altered division.

Electoral
Divisions and
County
Councillors.

(2.) No County Alderman or County Councillor in office at the commencement of this Order shall be deemed to lose his qualification by reason of the transfer of the added areas to the existing City by this Order.

Art. XXV.—(1.) (a.) The added areas shall be separated from the parishes or hamlet of which at the date of this Order they respectively form part and shall be amalgamated with the Parish of Gloucester.

Alteration of
parishes.

(b.) Of the part of the Hamlet of Tuffley not hereby included in the City the portion which is coloured purple on the City maps shall be amalgamated with the Parish of Quedgley and the portion which is coloured dark green on the City maps shall be amalgamated with the Parish of Whaddon.

(2.)—(a.) The Parish Council and the Parish Meeting of Tuffley shall be abolished and cease to exist and any powers and duties transferred by the Act of 1894 to such Parish Council or Parish Meeting so far as regards the added part of Tuffley shall be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Tuffley had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred so far as regards the added part of Tuffley by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the Parish Council of Tuffley held or incurred so far as regards the added part of Tuffley otherwise than by virtue or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Corporation.

(b.) Any property or liabilities held or incurred by the Parish Council of Tuffley so far as regards that part of the Hamlet of Tuffley which is by this

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. Order added to the Parish of Quedgley shall be transferred to and vest in or attach to the Parish Council of Quedgley and any property or liabilities held or incurred by the Parish Council of Tuffley so far as regards that part of the Hamlet of Tuffley which is by this Order added to the Parish of Whaddon shall be transferred to and vest in or attach to the Chairman and Overseers of the Parish of Whaddon.

Gloucester Order.

(3.) The Parish Councils of the Parishes of Barnwood Hempstead Quedgley and Upton Saint Leonard's shall be deemed to have been elected and shall be the Parish Councils for those parishes as altered by this Order and the Parish Councils of the Parishes of Barnwood Hempstead and Upton Saint Leonard's shall cease to exercise any powers or duties within any part of the added areas.

Rural District Councillors and Guardians.

Art. XXVI. Subject to the provisions of Section 60 of the Act of 1894—

- (1.) The Parish of Gloucester as altered by this Order shall for the purpose of the election of Guardians be divided into five wards.
- (2.) The four wards into which the existing Parish of Gloucester is divided and the number of Guardians assigned to such wards shall remain unaltered and the added areas shall constitute a new ward to be termed the Tuffley Ward and two Guardians shall be assigned to such ward.
- (3.) The two persons who at the commencement of this Order are the Rural District Councillors representing the Hamlet of Tuffley shall cease to act as Rural District Councillors but shall continue to act as members of the Board of Guardians of the Gloucester Union and shall be deemed to be Guardians elected for the Tuffley Ward of the Parish of Gloucester and shall continue to hold office in that capacity until the date on which they would have retired if this Order had not been made.

Ecclesiastical divisions and charities.

Art. XXVII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any of the existing parishes or hamlet affected by this Order.

Valuation lists.

Art. XXVIII. Until new valuation lists are made the portions of the valuation lists of the existing Parishes of Barnwood Hempstead Matson and Upton Saint Leonard's and of the Hamlet of Tuffley which relate to hereditaments in the added areas shall be deemed to form part of the valuation list of the Parish of Gloucester and the portion of the valuation list of the existing Hamlet of Tuffley which relates to hereditaments in the part of that hamlet hereby included in the Parish of Quedgley or in the Parish of Whaddon shall in each case be deemed to form part of the valuation list of the parish in which it is so included.

County rate basis.

Art. XXIX. Subject to any future revision—

- (a) the basis or standard of county rate for the county shall be deemed to be altered by the deduction from the amount appearing in such basis or standard as the total annual value of the property in each of the Parishes of Barnwood Hempstead Matson and Upton Saint Leonard's and in the Hamlet of Tuffley of such a sum as will in each case represent the annual value of the property in the added part of Barnwood the added part of Hempstead the added part of Matson the added part of Upton Saint Leonard's and the added part of Tuffley ;

- (b) the basis or standard of county rate for the County shall be further deemed to be altered by the addition to the amount appearing in such basis or standard as the total annual value of the property in each of the Parishes of Quedgley and Whaddon of such a sum in each case as will represent the annual value of the property in the areas by this Order added to those parishes respectively ;
- (c) for the purposes of this Article the sum which will represent the annual value of the property in the added part of Barnwood the added part of Hempstead the added part of Matson the added part of Upton Saint Leonard's and the added part of Tuffley and in the areas by this Order added to the Parishes of Quedgley and Whaddon shall in each case be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing parish or hamlet is in the same proportion as the assessable value of the property in the added part or area bears to the total assessable value of property in the existing parish or hamlet ;
- (d) for the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish or hamlet together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.

A.D. 1900.

Gloucester
Order.

Art. XXX. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes or hamlet affected by this Order shall be deemed to continue unaltered until the new registers come into operation :

Saving for
existing lists of
parliamentary
voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in any parish affected by this Order the County Council shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

Art. XXXI.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish or hamlet affected by this Order shall be deemed to have acquired a settlement in the parish or hamlet comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish or hamlet such settlement shall be in the parish or hamlet comprising the place of residence of such person at the time of acquiring such settlement.

Settlement of
paupers.

(2.) Any person who shall have acquired a status of irremovability from any existing parish or hamlet affected by this Order shall be deemed to have acquired a status of irremovability from the parish or hamlet comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish or hamlet comprising the area in which he was residing at the time of becoming chargeable.

Irremovability
of paupers.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in any area added by this Order to the Parish of

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. Gloucester the Parish of Quedgley or the Parish of Whaddon as the case may
Gloucester be shall be deemed to have been residence in the parish to which the area is
Order. added.

Saving for Art. XXXII. Notwithstanding the alteration effected in the areas of parishes
contribution and the hamlet by this Order all contribution orders made by the Guardians of
orders and the Poor of the Gloucester Union and all precepts made by the Rural Council
precepts. before the commencement of this Order shall be as valid in law as if this Order
had not been made.

Arrears of Art. XXXIII. Subject to the provisions of this Order—
rates. (1.) All arrears of rates which at the commencement of this Order are due
or owing in respect of hereditaments in the added part of Tuffley shall be
collected and recovered by the Overseers of the Poor of the Parish of
Gloucester and all such arrears of rates due or owing in respect of
hereditaments in those parts of the Hamlet of Tuffley which are added
by this Order to the Parishes of Quedgley and Whaddon shall be
collected and recovered by the Overseers of the Poor of those parishes
respectively.
(2.) All arrears of rates due or owing at the commencement of this Order
in respect of hereditaments in the added areas other than the added part
of Tuffley shall be collected and recovered by the Overseers of the Poor
of the existing parishes comprising those areas as if this Order had not
been made.

Differential Art. XXXIV. The general district rate to be levied on or in respect of the
rating in added portion of the added part of Hempstead lying to the west of and including the
part of Hemp- waterway of the Gloucester and Sharpness Canal shall not in any one year
stead. during the period of seven years from the commencement of this Order exceed
such an amount in the pound as when added to the poor rate and city or borough
rate for the same year will make a total rate of four shillings in the pound.

Short title. Art. XXXV. This Order may be cited as the Gloucester (Extension) Order
1900.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
33 Henry VIII. c. xxxv. -	An Act concerning the conduits of Gloucester.
17 Geo. III. c. lxxviii. -	An Act for rebuilding the bridge over the River Severn at Maisemore near the City of Gloucester for raising widening and securing Over's Causeway leading from the said City towards Maisemore aforesaid and for enforcing the proper paving of the several streets within the said City and for removing nuisances and annoyances therefrom and preventing the like for the future.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

PART I.—LOCAL ACTS—*continued.*

A.D. 1900.

Session and Chapter.	Title or Short Title.	<i>Gloucester Order.</i>
46 Geo. III. c. xlv. - -	An Act for taking down and rebuilding the Bridge across the River Severn at Gloucester called the Westgate Bridge and for opening convenient avenues thereto.	
53 Geo. III. c. v. - -	An Act for altering and enlarging the Powers of an Act of the seventeenth year of His present Majesty for building a Bridge at Maisemore in the County of Gloucester (23rd March 1813).	
54 Geo. III. c. clxxv. - -	An Act for erecting a Shire Hall and Courts for the Administration of Justice and other buildings for public purposes for the County of Gloucester and County of the City of Gloucester.	
1 & 2 Geo. IV. c. xxii. - -	An Act for establishing a proper place for holding Markets and Fairs for the sales of live stock in the City of Gloucester and the suburbs thereof and for opening convenient avenues thereto and for watching and otherwise improving the said City.	
18 & 19 Vict. c. lxxxix. - -	The Gloucester Waterworks Act 1855.	
37 & 38 Vict. c. cxi. - -	The City of Gloucester Extension and Improvement Act 1874.	
57 & 58 Vict. c. xci. - -	The Gloucester Corporation Act 1894.	

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
12 & 13 Vict. c. xciv.	The Public Health Supplemental Act 1849.	Order dated 21st July 1849.
28 Vict. c. xli. - -	The Local Government Supplemental Act 1865 (No. 3).	Order dated the 6th day of April 1865.
59 & 60 Vict. c. lxxxii.	The Electric Lighting Orders Confirmation (No. 1) Act 1896.	The Gloucester Corporation Electric Supply Order 1896.

Given under the Seal of Office of the Local Government Board this
Nineteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

A.D. 1900.

BOROUGH OF NORTHAMPTON.

*Northamp-
ton Order.*

*Provisional Order made in pursuance of Sections 54 and 59 of the
Local Government Act 1888.*

- To the Mayor Aldermen and Burgesses of the Borough of Northampton ; —
 - To the Justices of the Peace for the said Borough ; —
 - To the Court of Quarter Sessions for the said Borough ; —
 - To the School Board for the said Borough ; —
 - To the Justices of the Peace for the County of Northampton in Quarter Sessions assembled ; —
 - To the County Council of Northampton ; —
 - To the Urban District Councils of Far Cotton Kingsthorpe and Saint James (Northampton) ; —
 - To the Rural District Councils of Brixworth Hardingstone and Northampton ; —
 - To the Guardians of the Poor of the Brixworth Hardingstone and Northampton Unions ; —
 - To the Parish Councils of Abington Dallington Duston Hardingstone and Weston Favell ; —
 - To the Chairman of the Parish Meeting of each of the Parishes of Boughton and Moulton Park ; —
 - To the School Boards for the School Districts of Far Cotton and Hardingstone and for the Duston United School District ; —
 - To the Overseers of the Poor of each of the Parishes of Abington Boughton Dallington Dallington (Saint James) Duston Duston (Saint James) Far Cotton Hardingstone Kingsthorpe Moulton Park and Weston Favell ; —
 - To the Joint Committee appointed by the Urban District Council of Saint James (Northampton) and the Parish Council of Dallington and exercising the powers and duties of the authority under the Burial Acts 1852 to 1885 ; —
- And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

And whereas the Borough of Northampton is a County Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Northampton and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors ;

And whereas the said Borough is for the purpose of the election of Councillors divided into six wards termed respectively the Castle Ward the North Ward the Saint Crispin's Ward the Saint Edmund's Ward the Saint Michael's Ward and the South Ward ;

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

And whereas the said Borough is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council are the Urban Sanitary Authority;

A.D. 1900.
Northampton Order.

And whereas the said Borough has a separate court of quarter sessions commission of the peace police force and coroner;

And whereas the unrepealed provisions of the Local Acts and Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said Borough;

And whereas the Urban Sanitary Authority have adopted the provisions of—

- (a.) The Infectious Disease (Prevention) Act 1890;
- (b.) The Public Health Acts Amendment Act 1890 (except Part IV.) and
- (c.) The Museums and Gymnasiums Act 1891;

53 & 54 Vict.
c. 34.
53 & 54 Vict.
c. 59.
54 & 55 Vict.
c. 22.

and those provisions are accordingly in force in the said Borough;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 and 1893 are in force in the said Borough;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.

And whereas the Urban Districts of Far Cotton Kingsthorpe and Saint James (Northampton) and the Parishes of Abington and Dallington all in the County of Northampton immediately adjoin the said Borough;

And whereas the Urban District of Far Cotton is co-extensive with the Parish of Far Cotton and is subject to the jurisdiction of the Urban District Council of Far Cotton;

And whereas the Urban District Council of Far Cotton have adopted the provisions of—

- (a.) Parts I. II. and III. of the Public Health Acts Amendment Act 1890 and
- (b.) The Private Street Works Act 1892;

and those provisions are accordingly in force in the Urban District of Far Cotton;

And whereas the Urban District of Kingsthorpe is co-extensive with the Parish of Kingsthorpe and is subject to the jurisdiction of the Urban District Council of Kingsthorpe;

And whereas the Urban District Council of Kingsthorpe have adopted the provisions of—

- a.) The Infectious Disease (Prevention) Act 1890;
- (b.) Part III. of the Public Health Acts Amendment Act 1890 and
- c.) The Private Street Works Act 1892;

and those provisions and also the Public Libraries Acts 1892 and 1893 are in force in the Urban District of Kingsthorpe;

And whereas the Urban District of Saint James (Northampton) comprises the Parishes of Dallington (Saint James) and Duston (Saint James) and is subject to the jurisdiction of the Urban District Council of Saint James;

And whereas the Urban District Council of Saint James (Northampton) have adopted the provisions of—

- (a.) Parts I. II. and III. of the Public Health Acts Amendment Act 1890 and
- (b.) The Private Street Works Act 1892;

and those provisions and also the Baths and Washhouses Acts 1846 to 1899 are in force in the Urban District of Saint James (Northampton);

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.
Northampton Order.

And whereas a portion of the Parish of Abington has in pursuance of Section 277 of the Public Health Act 1875 been constituted a Special Drainage District termed "the Abington Special Drainage District" ;

And whereas the Abington Special Drainage District that portion of the Parish of Abington which is not comprised within the said Special Drainage District and the Parishes of Dallington Duston and Weston Favell are contributory places in the Rural District of Northampton and are subject to the jurisdiction of the Rural District Council of Northampton the Parishes of Boughton and Moulton Park are contributory places in the Rural District of Brixworth and are subject to the jurisdiction of the Rural District Council of Brixworth and the Parish of Hardingstone is a contributory place in the Rural District of Hardingstone and is subject to the jurisdiction of the Rural District Council of Hardingstone ;

And whereas the Rural District Council of Northampton have adopted the provisions of—

(a.) The Infectious Disease (Prevention) Act 1890 and

(b.) Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts ;

and those provisions are accordingly in force in the Rural District of Northampton ;

And whereas the Parish of Dallington and a portion of the Urban District of Kingsthorpe are included in the Duston Electoral Division of the County of Northampton the Parish of Abington and the remainder of the Urban District of Kingsthorpe are included in the Kingsthorpe Electoral Division of that County and the Urban Districts of Far Cotton and Saint James (Northampton) together form the Hardingstone Electoral Division of that County ;

And whereas the Parishes of Abington Dallington Dallington (Saint James) Duston Duston (Saint James) Kingsthorpe and Weston Favell are included in the Northampton Union the Parishes of Boughton and Moulton Park are included in the Brixworth Union and the Parishes of Far Cotton and Hardingstone are included in the Hardingstone Union ;

And whereas one Rural District Councillor is elected for the Parish of Abington ;

And whereas each of the said Parishes of Abington Dallington Duston Hardingstone and Weston Favell is a Rural Parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established ;

And whereas by virtue of the Elementary Education Acts 1870 to 1899 the said Borough and the Parishes of Far Cotton and Hardingstone are School Districts and the Parishes of Dallington Dallington (Saint James) Duston and Duston (Saint James) together form the Duston United School District and School Boards have been formed for the Borough the Parish of Far Cotton the Parish of Hardingstone and the Duston United School District and the said Parish of Kingsthorpe is subject to the jurisdiction of the School Attendance Committee appointed by the Urban District Council of Kingsthorpe and the said Parish of Abington is subject to the jurisdiction of the School Attendance Committee appointed by the Guardians of the Poor of the Northampton Union ;

And whereas by virtue of sub-section (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

Acts 1852 to 1885 for the area now comprised in the Parish of Dallington (Saint James) and the Parish of Dallington were transferred to the Urban District Council of Saint James (Northampton) and the Parish Council of Dallington and such powers and duties are exercised by a Joint Committee appointed in pursuance of the said sub-section ;

A.D. 1900.
Northampton Order.

And whereas the Lighting and Watching Act 1833 has been adopted for each of the Parishes of Abington and Hardingstone and the Parish Councils of those parishes respectively are the authorities for the execution of that Act :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

51 & 52 Vict.
c. 41.

Art. I. In this Order—

Definitions.

- (1.) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred.
- (2.) The expression "the existing Borough" means the Borough of Northampton as it existed immediately prior to the commencement of this Order.
- (3.) The expression "the Borough" means the existing Borough as extended by this Order.
- (4.) The expression "the Corporation" means the Mayor Aldermen and Burgesses of the existing Borough or of the Borough (as the context may require) acting by the council.
- (5.) The expressions "the County" and "the County Council" mean respectively the County of Northampton and the County Council of that County.
- (6.) The expression "the existing Borough School Board" means the School Board for the existing Borough and the expression "the Far Cotton School Board" means the School Board for the existing Parish of Far Cotton.
- (7.) The expressions "the Far Cotton Council" "the Kingsthorpe Council" and "the Saint James Council" mean respectively the Urban District Council of Far Cotton the Urban District Council of Kingsthorpe and the Urban District Council of Saint James (Northampton).
- (8.) The expressions "the Northampton Rural District" and "the Northampton Rural Council" mean respectively the Rural District of Northampton and the Rural District Council of that district and the expressions "the Brixworth Rural Council" and "the Hardingstone Rural Council" mean respectively the Rural District Council of Brixworth and the Rural District Council of Hardingstone.
- (9.) The expression "the Burial Committee" means the Joint Committee appointed for the purposes of the Burial Acts 1852 to 1885 by the Saint James Council and the Parish Council of Dallington as aforesaid and the expression "the Burial Area" means the area comprising the Parishes of Dallington and Dallington (Saint James).

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.
 —
Northampton Order.

- (10.) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Northampton as extended 1900" and sealed with the official seal of the Local Government Board.
- (11.) The expression "the added areas" means the parts of the Urban Districts of Far Cotton Kingsthorpe and Saint James (Northampton) and the parts of the Parishes of Abington and Dallington added to the existing Borough by this Order.
- (12.) The expression "the added part of Far Cotton" means the part of the Urban District of Far Cotton which is coloured light green on the Borough maps the expression "the added part of Kingsthorpe" means the part of the Urban District of Kingsthorpe which is coloured light brown and yellow on the Borough maps the expression "the added part of Saint James" means the part of the Urban District of Saint James (Northampton) which is coloured dark green on the Borough maps and the expressions "the added part of Abington" and "the added part of Dallington" mean respectively the parts of each of those parishes which are respectively coloured dark brown and purple on the Borough maps.
- (13.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 and
- (14.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commencement of Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred :

Date of operation of Order for parish burgess lists &c.
 51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order :

Date of operation for grants from Local Taxation Account.
 53 & 54 Vict. c. 60.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 the Borough shall be deemed not to have been extended until after the Thirty-first day of March One thousand nine hundred and one.

Extension of Borough.

Art. III.—(1.) (a.) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the added part of Far Cotton the added part of Kingsthorpe and the added part of Saint James and the parts of the Northampton Rural District which comprise the added part of Abington and the added part of Dallington.

(b.) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within such boundary shall for the

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purposes of the Municipal Corporations Acts and for all other purposes be the Borough and shall be the County Borough for the purposes of the Act of 1888.

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(2.)—(a.) The Urban Districts of Far Cotton Kingsthorpe and Saint James (Northampton) shall be dissolved ;

Dissolution of Urban Districts and addition of excluded parts to Rural Districts.

(b.) So much of the Urban District of Far Cotton as is not hereby included in the Borough shall be added to the Rural District of Hardingstone ;

(c.) So much of the Urban District of Kingsthorpe as is not hereby included in the Borough shall be added to the Rural District of Brixworth ; and

(d.) So much of the Urban District of Saint James (Northampton) as is not hereby included in the Borough shall be added to the Rural District of Northampton.

Art. IV.—(1.) One of the Borough maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Brixworth Rural Council to the clerk to the Hardingstone Rural Council to the clerk to the Northampton Rural Council and to the Board of Agriculture.

Deposit of maps.

(2.) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as relates to the boundary of the Borough and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

Copies of map to be evidence.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and the coroner of the existing Borough and of the justices of the peace appointed for the existing Borough and of the clerk to such justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough. Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made.

Powers and duties of justices &c. extended.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added areas shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the county in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Local Government Board may make such Order as shall appear to

Parish burgess lists &c.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
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A.D. 1900. them to be necessary to give effect to the provisions of this Order and may vary
Northampton Order. so far as shall be necessary the provisions in force with regard to such lists roll
 and registers.

Number of Art. VII. The number of Councillors of the Borough shall be increased from
 Councillors eighteen to twenty-seven and the number of Aldermen of the Borough shall be
 and Aldermen. increased from six to nine.

Division into Art. VIII. Subject as regards any future alteration of the wards hereby
 wards. constituted to the provisions of the Municipal Corporations Acts with respect to
 the alteration of wards the following provisions shall have effect:—

(1.) For the purposes of the election of Councillors the Borough shall be
 divided into nine wards.

(2.) Of the six existing wards the following wards and the number of
 Councillors respectively apportioned thereto shall remain unaltered viz. the
 Castle Ward the Saint Crispin's Ward the Saint Michael's Ward and the
 South Ward.

(3.) The existing North and Saint Edmund's Wards shall be altered as
 follows:—

(a.) The North Ward so as to include the portion of the added part of
 Kingsthorpe which is coloured light brown on the Borough maps.

(b.) The Saint Edmund's Ward so as to include the added part of
 Abington.

(4.) The number of Councillors respectively apportioned to the North and
 Saint Edmund's Wards shall remain unaltered.

(5.) Three wards to be termed respectively the Far Cotton Ward the
 Kingsthorpe Ward and the Saint James Ward shall be constituted as
 follows:—

(a.) The Far Cotton Ward shall comprise the added part of Far Cotton.

(b.) The Kingsthorpe Ward shall comprise the portion of the added part
 of Kingsthorpe which is coloured light yellow on the Borough maps.

(c.) The Saint James Ward shall comprise the added part of Saint James
 and the added part of Dallington.

(6.) Three Councillors shall be assigned to each of the new wards constituted
 by subdivision (5) of this Article.

(7.) Notwithstanding anything in the Municipal Corporations Acts to the
 contrary all the Councillors representing the North Ward and the Saint
 Edmund's Ward shall go out of office on the First day of November One
 thousand nine hundred but such Councillors shall be eligible for election as
 Councillors on that date.

First election Art. IX.—(1.) Three Councillors shall be elected on the First day of November
 of Councillors One thousand nine hundred for each of the North and Saint Edmund's Wards
 for new wards. and the first election of Councillors for the three new wards constituted by this
 Order shall be held on the same date and the Mayor of the existing Borough
 or such other person as he shall appoint shall be the returning officer at the
 election for each ward.

First election (2.) The first election of the three additional Aldermen of the Borough shall
 of Aldermen. take place on the Ninth day of November One thousand nine hundred and the

three additional Aldermen so elected shall be chosen one from among the Councillors elected for each of the said Far Cotton Kingsthorpe and Saint James Wards or from among the persons qualified to be Councillors whose qualifying property is situate in such ward.

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Art. X.—(1.) The Councillors elected in the year one thousand nine hundred for the North and Saint Edmund's Wards and for the three new wards constituted by this Order shall retire as follows :—

Retirement of Councillors for new wards and additional Aldermen elected in 1900.

(a.) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and one.

(b.) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and three.

(c.) The other Councillor for each ward on the First day of November One thousand nine hundred and two.

(2.) The three additional Aldermen elected for the Borough in the year one thousand nine hundred shall retire as follows :—

(a.) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and one.

(b.) The other two Aldermen on the Ninth day of November One thousand nine hundred and four :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Art. XI. The unrepealed provisions of the Local Acts and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Local Acts and Orders.

Art. XII.—(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments and scale of charges may be altered or repealed.

Byelaws &c.

(2.) All byelaws and regulations made by the County Council or by the Far Cotton Council the Kingsthorpe Council or the Saint James Council or by the Northampton Rural Council which immediately before the commencement of this Order are in force in any part of the added areas shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Far Cotton Council the Kingsthorpe Council the Saint James Council or the Northampton Rural

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A.D. 1900. Council before that date or shall have been sent to the surveyor or clerk to any
Northampton Order. of the said councils one month at least before that date and shall not have been
disapproved by such council. As regards any such work as aforesaid the byelaws
in force immediately before the commencement of this Order shall continue to
apply until the completion of such work in like manner and with the like effect as
if such byelaws had been made by the Corporation and as if the Corporation and
the Borough were referred to therein instead of the council and the district of
such council respectively. Provided that any proceedings which might have been
taken by any of the said councils against any person for any offence committed
before the commencement of this Order against any byelaws and regulations made
by such council and in force on that date in any part of the added areas may be
taken by the Corporation as if those byelaws and regulations had remained in
force and the Corporation had been substituted therein for such council.

(3.) All byelaws and regulations made by the Brixworth Rural Council the
Hardingstone Rural Council or the Northampton Rural Council which at the
commencement of this Order are in force in any existing contributory place to
which any area is by this Order added shall thenceforth apply to the contributory
place as altered by this Order until or except in so far as any such byelaws or
regulations may be altered or repealed.

Town clerk
and other
officers
continued.

Art. XIII.—(1.) The town clerk and all other officers and servants of the
Corporation of the existing Borough who hold office at the commencement of
this Order shall continue to be the town clerk and officers and servants of the
Corporation of the Borough and shall hold their offices by the same tenure as at
that date.

Borough
auditors.

(2.) The auditors who are in office at the commencement of this Order shall
continue in office and shall be the borough auditors until the next ordinary day of
election of borough auditors.

Compensation
to existing
officers.

Art. XIV.—(1.) The provisions of sub-section (13) of Section 118 and of
Section 119 of the Act of 1888 shall apply to all persons who at the commence-
ment of this Order hold office as officers or servants of the Far Cotton Council
the Kingsthorpe Council and the Saint James Council with such modifications
as are necessary to make those provisions applicable to the said officers and
servants and to the Corporation.

(2.) Every officer and servant for whose case this Order does not otherwise
specially provide and who by virtue of this Order or of anything done in
pursuance or in consequence thereof suffers any direct pecuniary loss by abolition
of office or by diminution or loss of fees or salary shall be entitled to have
compensation paid to him by the Corporation for such pecuniary loss and in
determining such compensation and the compensation payable to any person
who becomes entitled to compensation in pursuance of subdivision (1) of this
Article regard shall be had to the conditions and other circumstances required
by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases
of compensation under that section and the compensation shall not exceed the
limit therein mentioned and shall be paid in the case of any such officer or
servant whose office or employment relates wholly or partly to sanitary purposes
as defined by the Public Health Act 1875 out of the district fund and general
district rate of the Borough and in the case of any other such officer or servant
out of the borough fund of the Borough and the provisions of sub-sections (2)

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to (7) of the said Section 120 shall apply with such modifications (if any) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

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 —
Northampton Order.

(3.) Any officer or servant whose services are dispensed with by the Corporation because his services are not required or whose salary shall be reduced on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XV.—(1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Far Cotton Council the Kingsthorpe Council the Saint James Council the Northampton Rural Council the Parish Council of Abington or the Parish Council of Dallington in relation exclusively to any part of the added areas the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c. not to abate.

(2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by any of the said councils in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of such council the Corporation had done or suffered the same or been a party thereto.

Saving for contracts &c.

Art. XVI. All property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation property &c.

Art. XVII. The Far Cotton Council the Kingsthorpe Council and the Saint James Council shall liquidate so far as practicable before the commencement of this Order all current debts and liabilities incurred by them respectively.

Liquidation of current debts and liabilities.

Art. XVIII.—(1.) Subject to the provisions of this Order all property and liabilities which immediately before the commencement of this Order are vested in or attach to the Far Cotton Council the Kingsthorpe Council the Saint James Council or the Northampton Rural Council in relation exclusively to any part of the added areas shall be transferred to vested in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or attached to any of the said councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

Property &c. of District Councils.

(b.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Far Cotton Council the Kingsthorpe Council and the Saint James Council in relation exclusively to those parts of the district of any of such councils which are not hereby included in the Borough shall be transferred to vested in and attach to the Hardingstone Rural Council

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Northampton Order.

Abolition of
Urban
Councils.
Cesser of
jurisdiction of
Rural
Council of
Northampton.
Arrears of
rates &c.

t

he Brixworth Rural Council or the Northampton Rural Council as the case may be.

(2.) The Far Cotton Council the Kingsthorpe Council and the Saint James Council shall at the commencement of this Order be abolished and cease to exist.

(3.) The Northampton Rural Council shall cease to exercise any powers or have any duties within any part of the added areas.

(4.) All arrears of rates made by the Far Cotton Council the Kingsthorpe Council or the Saint James Council in respect of hereditaments in any part of the added areas and all other payments which at the commencement of this Order are due or owing to any of the said councils in respect of any part of the added areas may be collected and recovered by the Corporation and any arrears of rates made by any of those councils in respect of hereditaments in those parts of the Urban District of Far Cotton the Urban District of Kingsthorpe or the Urban District of Saint James (Northampton) which are not by this Order included in the Borough may be collected and recovered by the Overseers of the Poor of the parish in which any such part is by this Order included as if they were arrears of rates for special expenses made by them and when collected and recovered shall be applied by the overseers towards the discharge of the next precept of the council of the rural district containing the parish in respect of contributions for special expenses.

(5.) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or the Lighting and Watching Act 1833 or for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Northampton Rural Council or of the Parish Council of Abington or the Parish Council of Dallington as the circumstances may require and as at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation.

Mortgage debts
of District
Councils and
Corporation.

Art. XIX. The liability for repayment of any sums borrowed by the Far Cotton Council the Kingsthorpe Council or the Saint James Council and for repayment of the sum of four hundred and ten pounds borrowed by the Northampton Rural Council in respect of works of sewerage in the Abington Special Drainage District or of so much of any of such sums as shall be owing at the commencement of this Order and for the payment of the interest thereon shall be transferred and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sum borrowed as aforesaid together with so much of any sums borrowed by the Corporation before the commencement of this Order and charged on the district fund and general district rate of the existing Borough shall be charged upon the district fund and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall be charged upon the borough fund and borough rate of the Borough and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

[63 & 64 Vict.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

Art. XX.—(1.) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 (except Part IV.) the Museums and Gymnasiums Act 1891 and the Public Libraries Acts 1892 and 1893 shall be in force in and apply to the Borough as if the same had been adopted therein.

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*Northamp-
 ton Order.*
 Adoptive Acts.

(2.) The provisions of the Private Street Works Act 1892 shall cease to be in force in any part of the added areas :

Provided that nothing in this subdivision shall—

- (a) affect the operation prior to the commencement of this Order of any provisions of the said Act or anything duly done or suffered under any provisions of the said Act or
- (b) affect any right privilege obligation or liability acquired accrued or incurred under any provisions of the said Act or
- (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any provision of the said Act or
- (d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Art. XXI. For the purposes of the Elementary Education Acts 1870 to 1899—

Alteration of
 school districts
 &c.

- (1.) The members of the existing Borough School Board who shall be in office at the commencement of this Order shall be deemed to have been elected and shall be the School Board for the Borough.
- (2.) Any byelaws in force in the existing Borough at the commencement of this Order shall thenceforth apply to the Borough until revoked or altered and any byelaws made by the School Board for the Duston United School District shall cease to be in force in any part of the added areas.
- (3.) The Far Cotton School Board shall at the commencement of this Order be abolished and cease to exist and any byelaws made by that School Board shall cease to operate.
- (4.) The area of the Duston United School District shall be diminished by the exclusion therefrom of the added part of Saint James and the added part of Dallington and the School Board for the Duston United School District as it exists at the date of this Order shall be deemed to have been elected and shall be the School Board for that district as diminished as aforesaid.
- (5.) The school site or sites and buildings with their furniture and fittings belonging to the Far Cotton School Board or the School Board for the Duston United School District which are situate in the added areas shall be transferred to and vest in the School Board for the Borough for all the estate and interest therein of the Far Cotton School Board and the School Board for the Duston United School District and all contracts debts liabilities and engagements which at that date are existing or are owing by or attach to the Far Cotton School Board and the School Board for the Duston United School District respectively in respect of such school site or sites buildings furniture or fittings or with respect to the officers teachers and servants of the school or schools so transferred shall enure to and be discharged and satisfied by the School Board for the Borough :

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Provided that any doubt or difference arising under this subdivision of this Article shall be settled by arbitration in manner provided by Section 62 of the Act of 1888.

(6.) The liability for repayment of so much of any loans raised by the Far Cotton School Board or the School Board for the Duston United School District in respect of any school site or sites buildings furniture or fittings so transferred to the School Board for the Borough as shall be owing at the commencement of this Order and for the payment of the interest thereon shall be transferred to and attach to the School Board for the Borough and so much of such loans as shall be owing on that date together with so much of any sums borrowed by the existing School Board for the Borough as shall be owing on that date shall be charged on the school fund and the local rate for the time being chargeable with the expenses of the School Board for the Borough and all such sums shall be repaid by the School Board for the Borough within the respective periods if any for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(7.)—(a.) The provisions of sub-section (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers teachers or servants of the Far Cotton School Board with such modifications as are necessary to make those provisions applicable to the said officers teachers and servants of the School Board for the Borough.

(b.) Every officer teacher or servant of the School Board for the Duston United School District and every officer of the School Attendance Committee appointed by the Kingsthorpe Council or the Guardians of the Poor of the Northampton Union who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the School Board for the Borough and in determining such compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of paragraph (a) of this subdivision regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the school fund and local rate for the time being chargeable with the expenses of the School Board for the Borough and the provisions of sub-sections (2) to (7) of that section shall apply with such modifications (if any) as may be required.

(8.) In the event of school accommodation being provided by the School Board for the Borough in the area comprising the added part of St. James the expenses of providing such accommodation shall be separately stated in the precept of the School Board to the Corporation and in the Order of the Corporation to the overseers of the poor for the parishes comprising such area and shall be raised by a rate in the nature and having all the incidents of a poor rate levied in the said area.

Powers of
Urban District
Councils under

Art. XXII. Any powers duties or liabilities vested in the Far Cotton Council the Kingsthorpe Council and the Saint James Council respectively by any

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Order of the Local Government Board issued in pursuance of Section 33 of the Act of 1894 shall be deemed to vest in and attach to the Corporation in respect of the added part of Far Cotton the added part of Kingsthorpe and the added part of Saint James in like manner and with the like effect in all respects as if the Corporation had been referred to in the Order instead of any of the aforesaid councils.

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Section 33 of Act of 1894.

Art. XXIII. Subject to the provisions of Section 54 of the Act of 1888 the Duston Hardingstone and Kingsthorpe Electoral Divisions of the County as diminished by the inclusion in the County Borough of the added areas shall continue to be electoral divisions of the County and the persons who immediately prior to the commencement of this Order are the County Councillors representing the said electoral divisions shall from and after that date represent those divisions as hereby altered as if they had been originally elected to represent the divisions as hereby altered.

Electoral Divisions and County Councillors.

Art. XXIV. The accounts of the Far Cotton Council the Kingsthorpe Council and the Saint James Council and of the Abington Parish Council and of the committees and officers of such authorities and of the Far Cotton School Board and of any managers or officers appointed by the said School Board up to the commencement of this Order shall be audited in like manner and subject to the like incidents and consequences as if this Order had not been made:

Saving for audit of accounts up to appointed day.

Provided that such audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding:

Provided also that any sum certified by the district auditor to be due from any person shall in the case of the audit of the accounts of the Far Cotton Council the Kingsthorpe Council the Saint James Council the Parish Council of Abington and of the committees and officers of any such council be paid to the treasurer of the Borough and in the case of the audit of the accounts of the Far Cotton School Board or of any managers or officers appointed by the said School Board shall be paid to the treasurer of the School Board for the Borough. Any sum so paid to any such treasurer shall be a matter of adjustment under Section 62 of the Act of 1888.

Art. XXV.—(1.) At the commencement of this Order such members if any of the police of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the Borough or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

County police.

(2.) The provisions of Section 15 (2) of the Police Act 1890 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if such member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict. c. 45.

(3.) All the county police stations situate in any part of the added areas with the residences for constables and cells connected therewith and the fittings and

County police stations.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
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Northampton Order.

furniture thereof respectively shall be transferred to and vest in the Corporation as from the commencement of this Order for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sum as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

Compensation
to existing
county officers.

(4.) Every county coroner clerk to justices and every officer or servant of the County Council or of the Standing Joint Committee of the County who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the borough fund and the provisions of sub-sections (2) to (7) of that section shall apply with the necessary modifications.

Adjustment
of financial
relations
between
County and
County
Boroughs.

Art. XXVI.—(1.) In any case where the extension of the Borough by this Order shall affect the distribution of the proceeds of the local taxation licences of the estate duty and of the Local Taxation (Customs and Excise) duties between the County and the Borough or between the County or the Borough on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to such distribution and financial relations or questions equitable adjustments may be made between the areas interested.

(2.) Any such adjustment may be made by agreement between the Councils of the County and of the County Boroughs affected before the Thirtieth day of September One thousand nine hundred and one and in default of such agreement by the Local Government Board or if that Board think fit by an arbitrator appointed by them.

(3.) For the purposes of such adjustments the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in such provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

- (a) that in lieu of sub-section (6) of Section 61 of the Act of 1888 sub-sections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of such inquiries and
- (b) that sub-section (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

Art. XXVII.—(1.) (a.) The portion of the Parish of Abington which is not hereby included in the Borough shall be separated from that parish and shall be amalgamated with the Parish of Weston Favell. A.D. 1900.
Northampton Order.

(b.) The added part of Dallington shall be separated from the parish of Dallington and shall be amalgamated with the Parish of Dallington (Saint James). Alteration of
parishes.

(c.) The portion of the Parish of Far Cotton which is not hereby included in the Borough shall be separated from that parish and shall be amalgamated with the Parish of Hardingstone.

(d.) The portion of the Parish of Kingsthorpe which is not hereby included in the Borough and which is coloured dark blue on the Borough maps shall be separated from that parish and shall be amalgamated with the Parish of Boughton and the portion of the said Parish of Kingsthorpe which is not hereby included in the Borough and which is coloured light blue on the maps shall be separated from that parish and shall be amalgamated with the Parish of Moulton Park.

(e.) The portions of the Parish of Duston (Saint James) which are not hereby included in the Borough shall be separated from that parish and shall be amalgamated with the Parish of Duston.

(2.) The Parish Councils of the Parishes of Dallington Duston Hardingstone and Weston Favell shall be deemed to have been elected and shall be the Parish Councils for those parishes as altered by this Order and the Parish Council of Dallington shall cease to exercise any powers or duties within any part of the added areas. Parish Councils
and Meetings.

(3.)—(a.) The Parish Council and Parish Meeting of the Parish of Abington shall cease to exist and any powers and duties transferred by the Act of 1894 to such Parish Council or Parish Meeting shall so far as regards the added part of Abington be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Abington had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and all property or liabilities held or incurred so far as regards the added part of Abington for the purpose or by virtue of such powers and duties shall pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Council held or incurred so far as regards the added part of Abington otherwise than by virtue or for the purposes of such powers or duties shall be transferred to and vest in or attach to the Corporation.

(b.) Any property or liabilities held or incurred by the Parish Council of Abington so far as regards that part of the Parish of Abington which is by this Order added to the Parish of Weston Favell shall be transferred to vest in or attach to the Parish Council of Weston Favell.

Art. XXVIII.—(1.) The Burial Committee shall be abolished and the Parish Council of the Parish of Dallington as altered by this Order shall become the authority for executing the Burial Acts 1852 to 1885 within that parish as so altered. Abolition of
Burial Committee and
consequent
changes.

(2.) Nothing in this Order contained shall prejudice or affect any right of burial which any parishioner or inhabitant of the added part of Dallington or

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.
 —
Northampton Order.

of the Parish of Dallington (Saint James) may have acquired prior to the commencement of this Order in relation to the burial ground provided for the Burial Area or any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may have acquired prior to the commencement of this Order in relation to such burial ground.

(3.) Subject to any adjustment to be made between the Corporation and the Parish Council of the Parish of Dallington as altered by this Order all the property and liabilities vested in or attaching to the Saint James Council or the Parish Council of the existing Parish of Dallington in respect of the Burial Area and of the powers and duties of the authority under the Burial Acts 1852 to 1885 shall be transferred to vest in or attach to the Parish Council as such authority for the Parish of Dallington as hereby altered :

Provided that nothing herein contained shall prejudice or affect any mortgage or other security which may have been given by the Saint James Council or the Parish Council of Dallington or their predecessors in respect of any moneys borrowed for the purposes of the Burial Acts 1852 to 1885 in relation to the Burial Area or the rights and powers of the persons entitled under such mortgage or other security to enforce the same as if this Order had not been made.

Rural District
 Councillor and
 Guardian.

Art. XXIX.—(1.) The person who at the commencement of this Order is the Rural District Councillor representing the Parish of Abington shall cease to act as a Rural District Councillor but shall continue to act as a member of the Board of Guardians of the Northampton Union and shall be deemed to be a Guardian elected for the Parish of Abington as altered by this Order and shall continue to hold office in that capacity until the day upon which he would have retired if this Order had not been made.

Arrears of
 rates.

(2.) All arrears of rates made by Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in any area transferred by this Order from one parish to another shall be collected and recovered by the Overseers of the Poor of the existing parish comprising that area as if this Order had not been made.

Ecclesiastical
 divisions and
 charities.

Art. XXX. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any of the existing parishes affected by this Order.

Valuation lists.

Art. XXXI.—(1.) Until new valuation lists are made—

- (a) the portions of the valuation list of the Parish of Abington which relate to hereditaments in that part of the parish which is not hereby included in the Borough shall be deemed to form part of the valuation list of the Parish of Weston Favell;
- (b) the portions of the valuation list of the Parish of Dallington which relate to hereditaments in the added part of Dallington shall be deemed to form part of the valuation list of the Parish of Dallington (Saint James);
- (c) the portions of the valuation list of the Parish of Duston (Saint James) which relate to hereditaments in that part of that parish which is not hereby included in the Borough shall be deemed to form part of the valuation list of the Parish of Duston;

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

(d) the portions of the valuation list of the Parish of Far Cotton which relate to hereditaments in that part of that parish which is not hereby included in the Borough shall be deemed to form part of the valuation list of the Parish of Hardingstone;

A.D. 1900.
Northampton Order.

(e) the portions of the valuation list of the Parish of Kingsthorpe which relate to hereditaments in the parts of the parish which are hereby added to the Parishes of Boughton and Moulton Park respectively shall be deemed to form parts of the valuation lists of those parishes respectively.

(2.) Subject to any future revision—

the basis or standard of county rate for the County shall be deemed to be altered as follows :—

County rate
 basis.
 (Parochial
 alterations.)

(a) by the addition to the amount appearing in such basis or standard as the total annual value of the property in the Parishes of Weston Favell Hardingstone Boughton Moulton Park and Duston respectively of such a sum as will represent the annual value of the property in the areas respectively by this Order added to those parishes respectively ;

(b) by the deduction from the amount appearing in such basis or standard as the total annual value of the property in the Parish of Dallington of such a sum as will represent the annual value of the property in the added part of Dallington.

(3.) For the purposes of this Article the sum which will represent the annual value of the property in the areas added by this Order to the Parishes of Weston Favell Hardingstone Boughton Moulton Park and Duston and in the added part of Dallington respectively shall in each case be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing parish from which such area and added part are by this Order separated is in the same proportion as the assessable value of the property in such area and added part bears to the total assessable value of the property in the existing parish.

(4.) For the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.

Art. XXXII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the register of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers come into operation :

Saving for
 existing lists
 of parliamen-
 tary voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in any parish affected by this Order the County Council or the Corporation as the case may be shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

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Northampton Order.

Settlement of paupers.

Art. XXXIII.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish affected by this Order shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Irremovability of paupers.

(2.) Any person who shall have acquired a status of irremovability from any existing parish affected by this Order shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

Residence of paupers.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in any one of the areas added by this Order to the Parishes of Boughton Dallington (Saint James) Duston Hardingstone Moulton Park or Weston Favell shall be deemed to be residence in the parish to which any such area is added.

Saving for contribution orders and precepts.

Art. XXXIV. Notwithstanding the alteration effected in the areas of parishes by this Order all contribution orders made by the Guardians of the Poor of the Brixworth Union the Hardingstone Union or the Northampton Union and all precepts made by the Northampton Rural Council or the Brixworth Rural Council or the Hardingstone Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Dissolution of Abington Special Drainage District.

Art. XXXV. The Abington Special Drainage District shall be dissolved and so much thereof as is not included in the Abington added area shall be merged in the Parish of Weston Favell.

Differential rating.

Art. XXXVI. The general district rates to be levied in the added part Abington the added part of Dallington the added part of Far Cotton the added part of Kingsthorpe and the added part of Saint James respectively shall not in any one year during a period of ten years from the commencement of this Order exceed such an amount in the pound as when added to the poor rate and to the borough rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up—

In the case of the added part of Abington a total rate of five shillings and sixpence on each pound of the rateable value of such hereditament ;

In the case of the added part of Dallington a total rate of three shillings and one penny on each pound of the rateable value of such hereditament ;

In the case of the added part of Far Cotton a total rate of five shillings and eightpence on each pound of the rateable value of such hereditament ;

In the case of the added part of Kingsthorpe a total rate of five shillings and sixpence on each pound of the rateable value of such hereditament and

In the case of the added part of Saint James a total rate of five shillings on each pound of the rateable value of such hereditament.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

Provided that in the event of school accommodation being provided by the School Board for the Borough in the area comprising the added part of James Saint the rate levied in that area in pursuance of sub-division (8) of Article XXI. of this Order shall be in addition to the said rate of five shillings.

Art. XXXVII. This Order may be cited as the Northampton (Extension) Short title.
Order 1900.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
6 & 7 Vict. c. lxxviii. -	The Northampton Improvement Act 1843.
24 Vict. c. xlvii. -	The Northampton Waterworks Act 1861.
33 & 34 Vict. c. xlv. -	The Northampton Corporation Markets and Fairs Act 1870.
34 & 35 Vict. c. cxxxix. -	The Northampton Improvement Act 1871.
45 & 46 Vict. c. lxxiv. -	The Northampton Waterworks Act 1882.
45 & 46 Vict. c. ccxii. -	The Northampton Corporation Act 1882.
47 & 48 Vict. c. ccviii. -	The Northampton Corporation Waterworks Act 1884.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order relating to Northampton thereby confirmed.
39 Vict. c. xiii. - -	The Local Government Board's Provisional Orders Confirmation (Arundel &c.) Act 1876.	Order dated 2nd March 1876.
55 & 56 Vict. c. lxxi. -	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1892.	Order dated 13th April 1892.

Given under the Seal of Office of the Local Government Board this
Eighteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

BOROUGH OF TORQUAY.

*Torquay
Order.*

*Provisional Order made in pursuance of Sections 54 and 59 of the
Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of Torquay ; —
To the Justices of the Peace for the said Borough ; —
To the Justices of the Peace for the County of Devon in Quarter
Sessions assembled ; —
To the County Council of Devon ; —
To the Rural District Council of Newton Abbot ; —
To the Guardians of the Poor of the Newton Abbot Union ; —
To the Urban District Councils of Cockington and Saint Mary Church ; —
To the Overseers of the Poor of the Parishes of Cockington Saint Mary
Church and Tormoham ; —
And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

And whereas the Borough of Torquay is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Torquay and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors ;

And whereas the said Borough is for the purposes of the election of Councillors divided into six wards termed respectively the Ellacombe Ward the Strand Ward the Torre Ward the Torwood Ward the Upton Ward and the Waldon Ward ;

And whereas the said Borough is an Urban District of which the Mayor Aldermen and Burgesses acting by the council are the Urban District Council ;

And whereas the said Borough has a separate commission of the peace ;

And whereas the said Borough is co-extensive with the Parish of Tormoham ;

And whereas the unrepealed provisions of the Local Acts and Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said Borough ;

53 & 54 Vict.
c. 59.

And whereas the Urban District Council have adopted the provisions of the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the said Borough ;

And whereas the Urban Districts of Cockington and Saint Mary Church adjoin the said Borough ;

And whereas the Urban District of Cockington is co-extensive with the Parish of Cockington and is subject to the jurisdiction of the Urban District Council of Cockington and the Urban District of Saint Mary Church is co-extensive with

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

the Parish of Saint Mary Church and is subject to the jurisdiction of the Urban District Council of Saint Mary Church ;

A.D. 1900.

*Torquay
Order.*

And whereas the Urban District Council of Cockington have adopted the provisions of the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the Urban District of Cockington ;

53 & 54 Vict.
c. 59.

And whereas the Urban District Council of Saint Mary Church have adopted the provisions of—

(a) The Infectious Disease (Prevention) Act 1890 ;

53 & 54 Vict.
c. 34.

(b) The Public Health Acts Amendment Act 1890 and

53 & 54 Vict.
c. 59.

(c) The Private Street Works Act 1892 ;

and those provisions are accordingly in force in the Urban District of Saint Mary Church ;

55 & 56 Vict.
c. 57.

And whereas the said Parishes of Cockington Saint Mary Church and Tormoham are included in the Newton Abbot Union and two Guardians are elected for the said Parish of Cockington four Guardians are elected for the Parish of Saint Mary Church and twelve Guardians are elected for the Parish of Tormoham ;

And whereas the said Borough and the Urban Districts of Cockington and Saint Mary Church are respectively subject to the jurisdiction of School Attendance Committees appointed respectively by the Council of the said Borough the Guardians of the Newton Abbot Union and the Urban District Council of Saint Mary Church :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

51 & 52 Vict.
c. 41.

Art. I. In this Order—

Definitions.

- (1.) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred.
- (2.) The expression "the existing Borough" means the Borough of Torquay as it existed immediately prior to the commencement of this Order.
- (3.) The expression "the Borough" means the existing Borough as altered by this Order.
- (4.) The expression "the Corporation" means the Mayor Aldermen and Burgesses of the existing Borough or of the Borough (as the context may require) acting by the council.
- (5.) The expressions "the Cockington District" and "the Cockington Council" mean respectively the Urban District of Cockington and the Urban District Council of that district the expressions "the Saint Mary Church District" and "the Saint Mary Church Council" mean respectively the Urban District of Saint Mary Church and the Urban District Council of that district and the expression "the Urban Councils" means the Cockington and Saint Mary Church Councils collectively.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.
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Order.

- (6.) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Newton Abbot and the Rural District Council of that district.
- (7.) The expressions "the County" and "the County Council" mean respectively the County of Devon and the County Council of that County.
- (8.) The expression "the Torquay School Committee" means the School Attendance Committee appointed by the Corporation.
- (9.) The expression "the Newton Abbot School Committee" means the School Attendance Committee appointed by the Guardians of the Poor of the Newton Abbot Union.
- (10.) The expression "the Saint Mary Church School Committee" means the School Attendance Committee appointed by the Saint Mary Church Council.
- (11.) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Torquay as altered 1900" and sealed with the official seal of the Local Government Board.
- (12.) The expression "the added areas" means the parts of the Cockington District and of the Saint Mary Church District added to the existing Borough by this Order.
- (13.) The expression "the added part of Cockington" means the part of the Cockington District which is coloured yellow on the Borough maps and the expression "the added part of Saint Mary Church" means the part of the Saint Mary Church District which is coloured brown and green on the Borough maps.
- (14.) The expression "the excluded Borough area" means the part of the existing Borough which is coloured purple on the Borough maps.
- (15.) The expressions "the excluded part of Cockington" and "the excluded part of Saint Mary Church" mean respectively the parts of the Cockington District and of the Saint Mary Church District which are not by this Order added to the existing Borough.
- (16.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894.
- (17.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commence-
ment of Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred :

Date of
operation of
Order for
parish burgess
lists &c.
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order. A D. 1900.

Torquay
Order.

Extension of
Borough.

Art. III.—(1.) (a) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so that the excluded Borough area shall cease to form part of the Borough and the added part of Cockington and the added part of Saint Mary Church shall be included in the Borough ;

(b) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within such boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

(2.) The excluded Borough area shall be added to the Rural District and all rights privileges benefits and advantages enjoyed by the inhabitants (if any) of such area as burgesses of the Borough shall cease and be extinguished.

(3.) The Cockington District and the Saint Mary Church District shall be dissolved and the excluded part of Cockington and the excluded part of Saint Mary Church shall be added to the Rural District.

Art. IV.—(1.) One of the Borough maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council and to the Board of Agriculture. Deposit of
maps.

(2.) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as primâ facie evidence of the contents of such map so far as relates to the boundary of the Borough and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund. Copies of map
to be evidence.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to such justices shall extend to and apply throughout the Borough. Provided that every person committing an offence in any part of the added areas or the excluded Borough area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made. Powers and
duties of
justices &c.
extended.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added areas shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Parish burgess
lists &c.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. Local Government Board may make such Order as shall appear to them to be necessary to give effect to the provisions of this Order and may vary so far as shall be necessary the provisions in force with regard to such lists roll and registers.

Torquay Order.

Number of Aldermen and Councillors.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-seven and the number of Aldermen of the Borough shall be increased from six to nine.

Alteration of wards.

Art. VIII. Subject as regards any future alteration of the wards hereby constituted to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

- (1.) For the purposes of the election of Councillors the Borough shall be divided into nine wards.
- (2.) Of the six existing wards the Ellacombe Ward the Strand Ward the Torwood Ward the Upton Ward and the Waldon Ward and the number of Councillors apportioned thereto shall remain unaltered.
- (3.) The existing Torre Ward shall be altered by the exclusion therefrom of the excluded Borough area. The number of Councillors apportioned to the Torre Ward shall remain unaltered.
- (4.) So much of the added part of Saint Mary Church as is coloured brown on the Borough maps shall form a new ward to be termed the Saint Mary Church Ward so much of the added part of Saint Mary Church as is coloured green on such maps shall form a new ward to be termed the Babbacombe Ward and the added part of Cockington shall form a new ward to be termed the Chelston Ward.
- (5.) Three Councillors shall be assigned to each of the new wards constituted by subdivision (4) of this Article.
- (6.) The Councillors representing the existing Torre Ward who will not go out of office on the First day of November One thousand nine hundred shall be deemed from and after the commencement of this Order to represent such ward as hereby altered.

First election of Councillors for new wards.

Art. IX.—(1.) The first election of Councillors for the three new wards constituted by this Order shall be held on the First day of November One thousand nine hundred and the Mayor of the existing Borough or such other person as he shall appoint shall be the returning officer at the election for each ward.

First election of Aldermen.

(2.) The first election of the three additional Aldermen shall take place on the Ninth day of November One thousand nine hundred and the three Aldermen shall at such election be chosen one from among the Councillors elected for each of the Saint Mary Church Babbacombe and Chelston Wards or from among the persons qualified to be Councillors whose qualifying property is situate in such ward.

Retirement of Councillors for new wards and additional Aldermen elected in 1900.

Art. X.—(1.) The Councillors elected in the year one thousand nine hundred for each of the three wards constituted by this Order shall retire as follows :—

- (a.) The Councillor who is elected by the smallest number of votes on the First day of November One thousand nine hundred and one.
- (b.) The Councillor who is elected by the largest number of votes on the First day of November One thousand nine hundred and three.
- (c.) The other Councillor on the First day of November One thousand nine hundred and two.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

(2.) The three additional Aldermen elected for the Borough in the year one thousand nine hundred shall retire as follows:—

A.D. 1900.

(a.) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and one.

*Torquay
Order.*

(b.) The other two Aldermen on the Ninth day of November One thousand nine hundred and four:

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Art. XI.—(1.) The unrepealed provisions of the Local Acts and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and except as otherwise expressly provided by this Order shall cease to have effect in relation to the excluded Borough area and any reference in the said Local Acts and Confirmation Acts to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Local Acts
and Orders.

(2.)—(a.) Nothing in this Order shall diminish the limits within which the Corporation are empowered to supply water.

(b.) The expenses incurred by the Corporation of and in connexion with their water undertaking so far as the same shall not be defrayed out of the revenue arising from such undertaking shall be paid out of the district fund and general district rates of the Borough.

(3.) Nothing in this Order shall be deemed to extend or apply to any part of the added areas the provisions of the Torquay Market Act 1855 or the powers rights or privileges of the Torquay Market Company under that Act.

(4.)—(a.) Except as herein-after provided the unrepealed provisions of the Saint Mary Church Local Board Act 1868 as altered by the Provisional Order of the Local Government Board dated the Seventh day of May One thousand eight hundred and eighty-four and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1884 shall cease to be in force within the excluded part of Saint Mary Church and all the powers duties property and liabilities vested in or attaching to the Saint Mary Church Council under such unrepealed provisions as so altered shall be transferred to vest in or attach to the Corporation in respect exclusively of the added part of Saint Mary Church:

Provided that the said Act as altered by the said Provisional Order shall have effect as if the limits of the said Act with respect to the supply of gas from and after the commencement of this Order comprised and included the area comprised at the commencement of this Order in the Saint Mary Church District and the Corporation shall exercise within such area all the powers rights and

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. duties of the Saint Mary Church Council in connexion with the manufacture and supply of gas in the said area in pursuance of the said Act as so altered.

*Torquay
Order.*

(b.) The gas undertaking of the Saint Mary Church Council shall be held by the Corporation in trust for the area comprised within the added part of Saint Mary Church and any balance of the revenue arising from such undertaking shall be applied in relief of the rates levied in such area and any deficiency in such revenue shall be made good out of the rate levied in such area in pursuance of paragraph (d) of this subdivision.

(c.) So much of any sums borrowed by the Saint Mary Church Council for the purposes of their gas undertaking as remains outstanding at the commencement of this Order shall so far as such sums respectively are now charged upon and payable out of the rates leviable in the area comprising the Saint Mary Church District be charged upon and payable out of the rates to be levied in pursuance of paragraph (d) of this subdivision.

(d.) The Corporation shall from time to time make and levy such a rate in the nature of a general district rate upon the area comprised within the added part of Saint Mary Church as will be sufficient to raise the sums required to be raised by rates for the repayment of the several sums to which paragraph (c) of this subdivision applies and for the repayment of any sums borrowed after the commencement of this Order for the purposes of the said gas undertaking or for the payment of interest on such sums and for the payment of any deficiency in the revenue arising from such undertaking.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

(2.) All byelaws and regulations made by the Urban Councils and in force immediately before the commencement of this Order shall on that date cease to have effect except as regards any work commenced before that date or any work for which plans shall either have been approved by either of such councils before that date or shall have been sent to the surveyor or clerk to the Council one month at least before that date and shall not have been disapproved by the Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made in the case of the added part of Cockington and the added part of Saint Mary Church by the Corporation or in the case of the excluded part of Cockington and the excluded part of Saint Mary Church by the Rural Council and as if the Corporation and the Borough or the Rural Council and the Rural District as the case may be were referred to therein instead of the Urban Council by whom they were made and the district of such Council respectively. Provided that any proceedings which might have been taken by either of the Urban Councils against any person for

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

any offence committed before the commencement of this Order against any byelaws and regulations made by the Council may be taken by the Corporation or the Rural Council as the case may be as if those byelaws and regulations had remained in force and the Corporation or the Rural Council as the case may be had been substituted therein for the Council by whom they were made.

A.D. 1900.

*Torquay
Order.*

- (3.) All byelaws and regulations made by the Corporation and in force immediately before the commencement of this Order shall on that date cease to have effect in the excluded Borough area.

Art. XIII.—(1.) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough as the case may be and shall hold their offices by the same tenure as at that date.

Officers
continued.

- (2.) The auditors who are in office at the commencement of this Order shall continue in office and shall be the borough auditors until the next ordinary day of election of borough auditors.

Borough
auditors.

Art. XIV.—(1.) The provisions of sub-section (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Councils with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

Compensation
to existing
officers.

- (2.) Every officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in the case of any other such officer or servant out of the borough fund of the Borough and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

- (3.) Any such officer or servant whose services are dispensed with by the Corporation because his services are not required or whose salary shall be reduced on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XV. Subject to the provisions of this Order—

- (1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against either of the Urban Councils in relation exclusively to any part of the added

Actions &c.
not to abate.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

—
*Torquay
Order.*

Saving for
contracts &c.

areas the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

- (2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by either of the Urban Councils in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Urban Council the Corporation had done or suffered the same or been a party thereto.
- (3.) The provisions of this Article shall apply with the necessary adaptations and in particular with the substitution of the Rural Council for the Corporation or the Urban Council as the case may be to the excluded Borough area and the excluded part of Cockington and the excluded part of Saint Mary Church.

Corporation
property &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Art. XVII.—(1.) The Urban Councils shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them respectively :

(2.) The reasonable costs incurred by either of the Urban Councils before the date of this Order in respect of the inquiry preliminary to the said Order and otherwise in connexion with the said Order shall if and so far as such costs may be sanctioned by the Local Government Board be paid by the Corporation out of the district fund and general district rate of the Borough.

Property &c.
of Urban
Councils.

Art. XVIII.—(1.) The town hall and other lands and premises belonging to the Saint Mary Church Council exclusive of their gas undertaking and the liability for the repayment of so much of any sums borrowed by such Council in respect of such properties as is owing at the commencement of this Order and for the payment of the interest thereon shall be transferred to and vest in and attach to the Corporation.

(2.) Subject to the provisions of this Order—

(a.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to either of the Urban Councils in relation exclusively to any part of the added areas shall be transferred to vested in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to either of the Urban Councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

(b.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Cockington Council or the Saint Mary Church Council in relation exclusively to the excluded part of Cockington or the excluded part of Saint Mary Church as the case may be shall be transferred to vested in and attach to the Rural Council.

A.D. 1900.

*Torquay
Order.*

(3.) The Urban Councils shall at the commencement of this Order be abolished and cease to exist.

Abolition of
Urban
Councils.

(4.) The Corporation shall cease to exercise any powers or have any duties within the excluded Borough area.

Cesser of
jurisdiction.

(5.) All arrears of rates made by either of the Urban Councils in respect of hereditaments in any part of the added areas and all other payments which at the commencement of this Order are due or owing to either of the said Councils in respect of any part of the added areas may be collected and recovered by the Corporation and any arrears of rates made by either of those Councils in respect of hereditaments in the excluded part of Cockington or the excluded part of Saint Mary Church may be collected and recovered by the Overseers of the Poor of the new Parish of Cockington constituted by this Order as if they were arrears of rates for special expenses made by them and when collected and recovered shall be applied by the overseers towards the discharge of the next precept of the Rural Council in respect of contributions for special expenses.

Arrears of
rates.

(6.) All arrears of rates made either by the Corporation or by the Overseers of the Poor of the Parish of Tormoham for the purposes of any borough rate in respect of hereditaments in the excluded Borough area which at the commencement of this Order are due or owing may be collected and recovered by the Corporation or the overseers as if this Order had not been made.

Art. XIX. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rates of the existing Borough shall be charged upon the borough fund and borough rates of the Borough and so much of any sums borrowed by the Corporation as will at that date be owing and charged upon the district fund and general district rates of the existing Borough and so much of the sums the liability for repayment of which will be transferred to and vest in and attach to the Corporation by virtue of Article XVIII. (1) of this Order as is charged upon the district fund and general district rates of the Saint Mary Church District and will at that date be owing shall be charged upon the district fund and general district rates of the Borough and all such sums shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Mortgage debts
of Corporation.

Art. XX. For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital (which expenses may include the costs payable by the Corporation in pursuance of subdivision (2) of Article XVII. of this Order) the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the district fund and general district rate or the borough fund and borough rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and interest thereon. Provided that all

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

—
Torquay
Order.

Differential
rating.

such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board may determine.

Art. XXI.—(1.) The general district rates to be levied in the added part of Cockington shall not in any one year during a period of five years from the commencement of this Order exceed such an amount in the pound as when added to the water rent paid to the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up a total rate of four shillings on each pound of the rateable value of such hereditament and during the five years next following the expiration of the said period of five years will make up a total rate in any one year of four shillings and threepence in the pound.

(2.) Subject to the provisions of subdivision (4) of Article XI. of this Order for a period of eight years from the commencement of this Order the amount of rate on each pound of the rateable value of any hereditament included in any general district rate levied in the added part of Saint Mary Church shall be such as when added to the amount of rate on each pound of the rateable value of such hereditament as included in any water rate levied in the same area or to the amount of all sums payable as water rent in respect of such hereditament in the same area shall in each year be less by fivepence than the amount of rate on each pound of the rateable value of any hereditament of the like kind as included in any general district rate levied in the existing Borough together with the amount of rate on each pound of the rateable value of such hereditament as included in any water rate levied in the existing Borough or together with the amount of all sums payable as water rent in the existing Borough in respect of such hereditament.

Alteration
of school
districts &c.

Art. XXII. For the purposes of the Elementary Education Acts 1870 to 1899—

(a.) The Saint Mary Church School Committee shall be abolished and cease to exist and any byelaws made by such committee shall cease to have effect.

(b.) Any byelaws made by the Newton Abbot School Committee and in force at the commencement of this Order shall thenceforth apply to the excluded Borough area and the excluded part of Saint Mary Church until revoked or altered.

(c.) Any byelaws made by the Torquay School Committee and in force in the existing Borough at the commencement of this Order shall thenceforth apply to the Borough until revoked or altered and any byelaws made by the Newton Abbot School Committee shall cease to operate in the added part of Cockington.

Saving for
audit of Urban
Councils'
Accounts up
to appointed
day.

Art. XXIII. The accounts of the Urban Councils and of the officers of such authorities up to the commencement of this Order shall be audited in like manner and subject to the like incidents and consequences as if this Order had not been made :

Provided that such audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit of the accounts of such authorities to the contrary notwithstanding :

Provided also that any sum certified by the auditor which would have been required to be paid to the treasurer of either of the Urban Councils shall be paid to the borough treasurer.

Art. XXIV.--(1.) The provisions of the Public Health Acts Amendment Act 1890 shall be in force within and apply to the Borough as if the same had been adopted therein.

(2.) The provisions of the Infectious Disease (Prevention) Act 1890 and of the Private Street Works Act 1892 shall subject to the provisions of those Acts respectively or of any Act amending or extending the same cease to be in force within the added part of Saint Mary Church and the provisions of the last-mentioned Act shall cease to be in force within the excluded part of Saint Mary Church and the provisions of the Public Health Acts Amendment Act 1890 which are not applicable to Rural Districts shall cease to be in force in the excluded Borough area the excluded part of Cockington and the excluded part of Saint Mary Church :

Provided that nothing in this subdivision shall--

- (a) affect the operation prior to the commencement of this Order of any provisions of either of the said Acts or anything duly done or suffered under any provisions of either of the said Acts or
- (b) affect any right privilege obligation or liability acquired accrued or incurred under any provisions of either of the said Acts or
- (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any provision of either of the said Acts or
- (d) affect any investigation legal proceeding or remedy in respect of any right privilege obligation liability penalty forfeiture or punishment as aforesaid.

(3.) The provisions of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and the provisions of the Infectious Disease (Prevention) Act 1890 shall be in force within and apply to the Rural District as altered by this Order.

Art. XXV.--(1.) Any powers duties or liabilities transferred to the Saint Mary Church Urban Council by any Order of the Local Government Board issued in pursuance of Section 33 of the Act of 1894 with regard to the appointment of overseers or the appointment or revocation of the appointment of assistant overseers for the existing Parish of Saint Mary Church shall be deemed to vest in and attach to the Corporation in respect of the Parish of Saint Mary Church as altered hereby in like manner and with the like effect in all respects as if the Corporation and the Borough had been referred to in the Orders instead of the Saint Mary Church Urban Council and any such Order as aforesaid so far as the same transfers any such powers duties or liabilities to the Cockington Urban Council is hereby rescinded.

Appointment
of overseers
and assistant
overseers.

(2.) Any Order issued by the Local Government Board in relation to the appointment of the same person as Medical Officer of Health for the existing Borough and the Saint Mary Church District is hereby rescinded and the Medical Officer of Health appointed under any such Order shall be the Medical Officer of Health for the Borough and shall hold such office upon the same terms as to remuneration tenure of office and otherwise and subject to the same regulations liabilities and provisions as now apply to him in respect of such office.

Medical Officer
of Health.

Art. XXVI.--(1.) The added part of Cockington shall be amalgamated with the Parish of Tormoham.

Alteration of
parishes.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A D. 1900.

Torquay
Order.

New parish.

(2.) The excluded part of Cockington the excluded part of Saint Mary Church and the excluded Borough area shall be amalgamated and form a new parish to be called the Parish of Cockington.

(3.) The said new Parish of Cockington shall be included in and form part of the Newton Abbot Union and all Orders in force in the said Union shall be in force within and apply to such new parish.

Parish Council.

(4.) There shall be a Parish Council for the new Parish of Cockington which shall consist of such number of members as may be determined by the County Council The election of such Parish Council shall be held as soon as may be practicable after the commencement of this Order.

Rural District
 Councillors
 and Guardians.

Art. XXVII.—(1) The persons who at the commencement of this Order are the Guardians representing the Parish of Cockington shall be deemed to have been elected and shall act as Rural District Councillors and Guardians of the new Parish of Cockington and shall continue to hold office until the day upon which they would have retired if this Order had not been made and subject to the provisions of Section 60 of the Act of 1894 at all future elections the number of Rural District Councillors elected for the new Parish of Cockington shall be two.

(2)—(a.) Subject to the provisions of Section 60 of the Act of 1894 the Parish of Tormoham as hereby altered shall for the purposes of the election of guardians be divided into seven wards.

(b.) Of the six existing wards the Ellacombe Ward the Strand Ward the Torwood Ward the Upton Ward and the Waldon Ward and the number of guardians assigned thereto shall remain unaltered.

(c.) The existing Torre Ward shall be altered by the exclusion therefrom of the excluded borough area The number of guardians assigned to such ward shall remain unaltered.

(d.) An additional ward to be termed the Chelston Ward shall be constituted and shall comprise the added part of Cockington. One guardian shall be assigned to such ward.

Overseers for
 new Parish of
 Cockington.

Art. XXVIII. Overseers of the Poor shall be appointed for the new Parish of Cockington as soon as practicable after the commencement of this Order but until such appointments are made the Overseers of the Poor of the existing Parish of Cockington shall act as overseers for such new parish.

Ecclesiastical
 divisions and
 charities.

Art. XXIX. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any of the existing parishes affected by this Order.

Valuation lists

Art. XXX. Until new valuation lists are made—

- (1) the portions of the valuation list of the existing Parish of Cockington which relate to hereditaments in the added part of Cockington shall be deemed to form part of the valuation list of the Parish of Tormoham and
- (2) the remaining portions of the valuation lists of the existing Parish of Cockington together with the portions of the valuation lists of the existing Parishes of Saint Mary Church and Tormoham which relate to hereditaments in the excluded part of Saint Mary Church and in the excluded Borough area shall together form the valuation list for the new Parish of Cockington.

Art. XXXI.—(1.) Subject to any future revision the basis or standard of county rate for the County shall be deemed to be altered as follows:—

A.D. 1900.
 —
Torquay
Order.
 County rate
 basis.

(a.) By the addition to the amount appearing in such basis or standard as the total annual value of the property in the Parish of Tormoham of such a sum as will represent the annual value of the property in the added part of Cockington and by the deduction from the amount so appearing of such a sum as will represent the annual value of the property in the excluded Borough area.

(b.) By the deduction from the amount appearing in such basis or standard as the total annual value of the property in the Parish of Saint Mary Church of such a sum as will represent the annual value of the property in the excluded part of Saint Mary Church.

(c.) The total annual value of the property in the new Parish of Cockington shall be such a sum as will represent the total annual value of the property in the excluded part of Cockington the excluded part of Saint Mary Church and the excluded Borough area.

(2.) For the purposes of this Article the sum which will represent the annual value of the property in the added part of Cockington the excluded part of Cockington the added part of Saint Mary Church the excluded part of Saint Mary Church and in the excluded Borough area respectively shall in each case be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the property in the existing Parishes of Cockington Saint Mary Church and Tormoham respectively is in the same proportion as the assessable value of the property in such added or excluded part or area bears to the total assessable value of the property in the existing parish.

(3.) For the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.

Art. XXXII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers come into operation :

Saving for
 existing lists of
 parliamentary
 voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in the new Parish of Cockington the County Council shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

Art. XXXIII.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish affected by this Order shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Settlement of
 paupers.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900.

*Torquay
Order.*
Irremovability
of paupers.

(2.) Any person who shall have acquired a status of irremovability from any existing parish affected by this Order shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in any one of the areas included by this Order in the new Parish of Cockington or the Parish of Tormoham shall be deemed to have been residence in the parish to which any such area is added.

Saving for
contribution
orders and
precepts.

Art. XXXIV. Notwithstanding the alteration in the areas of parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Newton Abbot Union before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXXV. All arrears of rates made by the Overseers of the Poor of the existing Parishes of Cockington Saint Mary Church and Tormoham and due at the commencement of this Order shall be collected and recovered by the overseers of the new Parish of Cockington or the Parish of Saint Mary Church or the Parish of Tormoham as altered by this Order as the case may be as if this Order had not been made.

Art. XXXVI. Nothing in this Order contained shall affect any right title interest or power of the owner of the foreshore within the Parish of Cockington.

Short title.

Art. XXXVII. This Order may be cited as the Torquay (Extension) Order 1900.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
43 Geo. III. c. lxxxviii. -	An Act for repairing enlarging and improving the Pier and Quay within the Port or Harbour of Torquay in the County of Devon.
5 & 6 Will. IV. c. xlv. -	An Act for lighting watching and improving the Parish of Tormoham in the County of Devon.
5 & 6 Will. IV. c. cviii. -	An Act to rectify a mistake in an Act passed in the present Session of Parliament for lighting watching and improving the Parish of Tormoham in the County of Devon.
19 & 20 Vict. c. lxxviii. -	The Torquay Waterworks Act 1856.
49 & 50 Vict. c. cxix. -	The Torquay Harbour and District Act 1886.
60 Vict. c. xxiii. -	The Torquay Corporation Water Act 1897.

[63 & 64 VICT.]

Local Government Board's

[Ch. clxxxiii.]

Provisional Orders Confirmation (No. 14) Act, 1900.

PART II.—CONFIRMATION ACTS.			A.D. 1900.
Session and Chapter.	Short Title.	Order relating to Torquay thereby confirmed.	Torquay Order.
13 & 14 Vict. c. cviii. -	The Public Health Supplemental Act 1850 (No. 3).	Order dated 1st August 1850.	
23 & 24 Vict. c. xliv. -	The Local Government Supplemental Act 1860.	Order dated 11th May 1860.	
27 & 28 Vict. c. xciii.	The Pier and Harbour Orders Confirmation Act 1864.	Torquay Harbour Order 1864.	
29 & 30 Vict. c. cvi. -	The Local Government Supplemental Act 1866 (No. 3).	Order dated 29th May 1866.	
31 & 32 Vict. c. xlvii.	The Pier and Harbour Orders Confirmation Act 1868 (No. 2).	Torquay Harbour Order 1868.	
42 Vict. c. xliii. -	The Local Government Board's Provisional Orders Confirmation (Ashton under Lyne &c.) Act 1879.	Order dated 17th April 1879.	
42 & 43 Vict. c. lv. -	The Pier and Harbour Orders Confirmation Act 1879.	Torquay Promenade Pier Order 1879.	
45 & 46 Vict. c. lxii. -	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1882.	Order dated 9th May 1882.	
46 & 47 Vict. c. lxxxix.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1883.	Order dated 4th May 1883.	
51 & 52 Vict. c. clxx.	The Pier and Harbour Orders Confirmation (No. 2) 1888.	Torquay Harbour Order 1888.	
54 & 55 Vict. c. lxii. -	The Electric Lighting Orders Confirmation (No. 5) Act 1891.	Torquay Electric Lighting Order 1891.	
55 & 56 Vict. c. cciv. -	The Pier and Harbour Orders Confirmation (No. 3) Act 1892.	Torquay Harbour Order 1892.	
56 & 57 Vict. c. ciii. -	The Pier and Harbour Orders Confirmation (No. 1) Act 1893.	Torquay Harbour Order 1893.	

Given under the Seal of Office of the Local Government Board this
Seventeenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.

S. B. PROVIS Secretary.

COUNTIES OF DERBY AND STAFFORD.

Provisional Order under Section 10 of the Local Government Act 1888.

Derby and Stafford Order.

To the County Council of Derby ;—
To the County Council of Stafford ;—
To the Walton-upon-Trent Bridge Company ;—
And to all others whom it may concern.

WHEREAS by Section 10 of the Local Government Act 1888 (herein-after referred to as "the Act") the Local Government Board are empowered to make

51 & 52 Vict.
c. 41.

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. from time to time a Provisional Order for transferring to County Councils any
Derby and such powers duties and liabilities arising within the county of any commissioners
Stafford of sewers conservators or other public body corporate or unincorporate (not
Order. being the corporation of a municipal borough or an urban or rural authority or
a school board and not being a board of guardians) as are conferred by or in
pursuance of any statute and by the said section it is provided that before any
such Order is made the draft thereof shall be approved if it affects the powers
duties or liabilities of any commissioners conservators or body corporate or
unincorporate by such commissioners conservators or body and that if any such
powers duties or liabilities as are referred to in any Provisional Order under the
said section arise within two or more counties they may be transferred to the
County Councils of such two or more counties jointly and may be exercised and
discharged by a Joint Committee of such councils ;

And whereas by Section 6 of the Act it is enacted that a County Council
shall have power to purchase or take over on terms to be agreed on existing
bridges not being county bridges and to erect new bridges and to maintain
repair and improve any bridges so purchased taken over or erected ;

And whereas by an Act passed in the third year of the reign of His
3 Will. IV. c. 1. late Majesty King William the Fourth intituled "An Act for building a
" bridge over the River Trent from Walton-upon-Trent in the County of
" Derby to Barton-under-Needwood in the County of Stafford" (herein-after
referred to as "the Bridge Act") a company was incorporated by the name of
"the Walton-upon-Trent Bridge Company" (herein-after referred to as "the
Bridge Company") with power to raise money (not exceeding in the whole
five thousand five hundred pounds) by the issue of shares of ten pounds each
for building a bridge with the appurtenances and approaches thereto (herein-
after referred to as "the bridge") over the River Trent from Walton-upon-
Trent in the County of Derby to Barton-under-Needwood in the County of
Stafford ;

And whereas the Bridge Company was empowered by the Bridge Act to
raise in addition to the said share capital of five thousand five hundred pounds
the further sum of one thousand eight hundred and [thirty-three pounds and
to borrow that amount by way of mortgage of the bridge and the tolls arising
therefrom ;

And whereas the Bridge Company was also empowered by the Bridge Act
to erect toll-gates and toll-houses at or near the bridge and to demand and take
the tolls authorised by the Bridge Act for the passage of persons beasts and
carriages over the bridge ;

And whereas by Section 82 of the Bridge Act it was enacted that after
the bridge should have been completed the same should be opened to the public
and that all persons with or without horses cattle or carriages should have free
liberty upon payment of the tolls by that Act granted to pass over the same
without any interruption whatsoever but that the bridge should not be deemed
to be a county bridge so as to subject the Counties of Derby and Stafford or
either of them or any parish or parishes therein to repair the same or either of
the approaches thereto ;

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

And whereas the Bridge Company erected the bridge and for that purpose raised the sum of five thousand five hundred pounds by the issue of the shares authorised by the Bridge Act ;

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And whereas the Bridge Company borrowed money on mortgage in accordance with the provisions of the Bridge Act and of the sums so borrowed the amounts mentioned in Part I. of the Schedule hereto (herein-after referred to as "the Schedule") were outstanding on the Twenty-fifth day of March One thousand nine hundred together with interest thereon from the Twenty-first day of April One thousand eight hundred and ninety-nine ;

And whereas the sums mentioned in Part II. of the Schedule were on the Twenty-fifth day of March One thousand nine hundred due and owing by the Bridge Company to the persons therein mentioned ;

And whereas it is proposed that the bridge be sold and transferred to the County Councils of Derby and Stafford (which councils are herein-after referred to separately as "the Derby Council" and "the Stafford Council" and collectively as "the two councils") in order that the said tolls may be abolished and that the bridge may become vested in the two councils jointly ;

And whereas the Company has agreed to sell to the two councils the bridge with all rights and privileges of the Company under or by virtue of the Bridge Act free from the liabilities mentioned in the Schedule and from all other liabilities debts charges and incumbrances for the sum of three thousand five hundred pounds ;

And whereas a sum of one thousand and two hundred pounds has been subscribed by certain persons towards the said sum of three thousand five hundred pounds and the sum so subscribed is now deposited with the clerks of the peace of the Counties of Derby and Stafford and the two councils have agreed to defray the sum of two thousand three hundred pounds (being the balance of the said sum of three thousand five hundred pounds after deducting the said sum of one thousand two hundred pounds) in the following proportions viz. one thousand five hundred pounds by the Derby Council and eight hundred pounds by the Stafford Council ;

And whereas in order to carry out the purposes aforesaid it is expedient that this Provisional Order be made under Section 10 of the Act and the draft of this Provisional Order has in accordance with that section been approved by the Bridge Company :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 10 of the Act and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

51 & 52 Vict.
c. 41.

Art. I. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the date of the Act of Parliament confirming the same which date is herein-after referred to as "the appointed day."

Art. II.—(1.) Within one month after the appointed day the Bridge Company shall sell and convey to the two councils and the two councils shall purchase and take from the Bridge Company all the estate and interest of the Bridge Company in the bridge (which bridge and its approaches are coloured

[Ch. clxxxiii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 14) Act, 1900.

A.D. 1900. brown on the three maps each sealed by the Local Government Board one of which is deposited in the office of the Local Government Board and the other two of which are deposited with the clerk of the Derby Council and the clerk of the Stafford Council respectively) and all other property rights and privileges of or belonging to or in possession of the Bridge Company under or by virtue of the Bridge Act at or for the sum of three thousand five hundred pounds.

—
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(2.) The bridge and all such other property rights and privileges as aforesaid shall be duly conveyed to the two councils by the Bridge Company and all other necessary parties (if any) free from the liabilities mentioned in the Schedule and from all other liabilities debts charges and incumbrances and shall subject to the provisions of this Order be vested in held enjoyed exercised and possessed by the two councils jointly in equal shares as tenants in common and as if the bridge had been a bridge transferred to the two councils jointly by the Act and the two councils shall on such conveyance be effectually exonerated from seeing to the application of or being answerable for any loss or misapplication of any purchase money.

Art. III. Upon the completion of the purchase—

- (1) the bridge shall notwithstanding anything in the Bridge Act to the contrary be deemed to be a county bridge vested in the two councils jointly and shall be free from all tolls.
- (2) The provisions of the Bridge Act shall be repealed except Sections 68 79 and 80 which sections shall enure for the benefit of and may be enforced summarily by the two councils or either of them or by a joint committee of the two councils appointed under the Act in lieu of the Bridge Company.

Art. IV.—(1.) The sum of one thousand two hundred pounds so deposited with the clerks of the peace of the Counties of Derby and Stafford shall be applied by the two councils in part payment of the said sum of three thousand five hundred pounds and the balance of the said sum of three thousand five hundred pounds shall be contributed as to one thousand five hundred pounds by the Derby Council and as to eight hundred pounds by the Stafford Council.

- (2.) The purposes of this Order which shall include the payment of—
- (a) the costs charges and expenses of the two councils preliminary and of and incidental to the agreement between those councils and the Bridge Company
 - (b) the said sums of one thousand five hundred pounds and eight hundred pounds and
 - (c) the costs charges and expenses of the two councils of and incidental to the preparation and confirmation of this Order or otherwise in regard thereto as sanctioned by the Local Government Board

shall be deemed to be purposes of the Act for which the Derby Council and the Stafford Council may with the consent of the Local Government Board borrow money under and in accordance with the provisions of Section 69 of the Act.

(3) The treasurer of the County of Derby or of the County of Stafford as the case may be shall within twenty-one days after the Thirty-first day of

[63 & 46 VICT.] *Local Government Board's* [Ch. clxxxiii.]
Provisional Orders Confirmation (No. 14) Act, 1900.

March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of moneys borrowed under the Act for the purposes of this Order by the Derby Council or the Stafford Council as the case may be and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may from time to time be prescribed by that Board and if required by that Board verified by statutory declaration of such treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return such treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

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(4.) If it appears to the Local Government Board by that return or otherwise that the Derby Council or the Stafford Council as the case may be have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by Order direct that the sum in such Order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such Order mentioned and any such Order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Art. V. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by that Board in relation to such inquiry (including such reasonable sum not exceeding three guineas a day as that Board may determine for the services of any inspector or officer of the Board engaged in such inquiry) shall be paid by the County Council concerned in such inquiry and in such proportions as the Local Government Board may direct and the Local Government Board may certify the amount of the costs so incurred and any sum so certified and directed by that Board to be paid by either of the County Councils shall be a debt due to the Crown from such council.

Art. VI. This Order may be cited as the Walton-upon-Trent Bridge Order 1900.

[Ch. clxxxiii.] Local Government Board's [63 & 64 VICT.]
Provisional Orders Confirmation (No. 14) Act, 1900.

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The SCHEDULE above referred to.

PART I.

Names of Mortgagees.	Persons entitled to receive Payment.	Balance outstanding on 25th March 1900.	
		Principal.	Interest.
The Executors of the Will of Frederick Thornley deceased - - - The legal personal representatives of Joseph Wright Faux deceased - - -	John German of Ashby-de-la-Zouch Land Agent the Receiver appointed by Order of Mr. Baron Pollock dated the 20th December 1895 on behalf of the mortgagees of the Bridge Tolls.	£	£ s. d
		300	13 7 10
		300	13 7 10

PART II.

Debts outstanding on 25th March 1900.	Names of Creditors.
766 <i>l.</i> 7 <i>s.</i> 10 <i>d.</i> in respect of the debt and costs under the judgment of the Queen's Bench Division of the High Court dated 25th March 1896 and interest thereon from date of judgment.	George Hodges and Lloyd's Bank Limited.
93 <i>l.</i> 14 <i>s.</i> 9 <i>d.</i> in respect of the salary of the clerk to the Bridge Company from 18th January 1896 and of disbursements made by him on behalf of the Company.	Henry Goodger.

Given under the Seal of Office of the Local Government Board this
Eighteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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